

DOUGLAS COUNTY LIBRARIES**BOARD BUSINESS MEETING**

Wednesday, September 30, 2026, 5:30 p.m., Lone Tree Library, Lone Tree, CO

Call meeting to Order**Attendance**

Guests Former Trustee Taylor Watson, Kyle Perry with Chandler Asset Management, Inc.

Off Duty Security Lone Tree Police Department

Public Comment**Library Business**

Do any board members have a conflict of interest to disclose regarding any of the matters below? If so, please recuse yourself, and return to the meeting after the discussion has ended.

Consent Agenda Recommendation(s) Memo [page 3](#)

- Minutes September 16, 2026 Special Meeting [page 4](#)
- 2027 Holiday Schedule [page 8](#)
- Ransom Ransom Appointment Email for District I Open Seat [page 9](#)

Presentation

- Library Investments – Kyle Perry, Chandler Asset Management, Inc.

Action & Discussion Item(s)

- Resolution 26-09-01 Recognizing the Service of Taylor Watson [page 11](#)
- 2027 Budget Review [page 12](#)
- Bylaws Governance Updates [page 17](#)
- Policy Update Memo [page 31](#)
 - a) Financial Policies Updates: Authorization of Expenditure Policy and Purchasing Policy [page 32](#)
- Risk Management Policy [page 37](#)
- Customer Experience [page 40](#)
 - a) Access Policy - Customer Privacy
 - b) Library Facilities and Spaces Policy - Petitions and Free Speech Activities
- Access Policy Correction [page 43](#)
- Annual Risk Report [page 44](#)
- Water/Sewer Tap Agreement for Sterling Ranch Project [page 46](#)
- CAB Utility Easement for Sterling Ranch Project [page 60](#)

Executive Director Update

- Written Report [page 71](#) including:
 - Sterling Ranch
 - Memo on Roxborough and Louviers Options [page 75](#)
 - Citizen Review Request & Response “Queer Ducks and Other Animals” [page 78](#)

Partner Reports

- Douglas County Youth Initiative
- Partnership of Douglas County Governments

- Douglas County Libraries Foundation

Executive Session – Executive Director’s Annual Review

Pursuant to Colorado Revised Statute Section 24-6-402(4)(f) for the purpose of discussing personnel matters related to the Executive Library Director’s annual review and goals.

Trustee Comments and Questions

Upcoming Board Meetings

- October 15, 2026, Executive Committee Meeting, Castle Pines Library, Castle Pines, Colorado, 8:00 a.m.
- October 28, 2026, Lone Tree Library, Lone Tree, Colorado
 - Board Study Session, 4:00 p.m. (Dinner at 5:00 p.m.)
 - Board Business Meeting, 5:30 p.m.

Other Meetings

- November 9, 2026, Partnership of Douglas County Governments Elected/Appointed Officials Reception, Philip & Jerry Miller Library, Castle Rock, Colorado, 6:00 p.m.

Adjourn

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 30, 2026

From: Patti Owen-DeLay

Subject: Consent Agenda

Issue: Review and approve the Consent Agenda item(s).

Discussion:

The Consent Agenda follows the process outlined below:

- Items will be added as normal or appropriate for the Consent Agenda
- Consent Agenda items are not discussed
- It takes a motion and unanimous vote to add items to the Consent Agenda
- Any one board member can request to pull consent items for discussion, that item will be moved for discussion and action under Library Business
- Motion recommendation will be accepted as proposed; if an amended motion is needed, the item will be pulled from the Consent Agenda to accomplish this
- To pull an item from the Consent Agenda, tell the meeting chair that you would like to pull item number __, (stating the item number)
- Item(s) moved will be handled first under Action & Discussion unless the Board takes a motion to do something different with the item.

Consent Agenda Items for this meeting are:

1. Board Special Meeting Minutes, September 16, 2026
2. Douglas County Libraries 2027 Holiday Schedule
3. Ransom Appointment Email for District I Open Seat

Recommendation: Move to approve the Consent Agenda as presented (or as amended if an item or items were pulled).

Note: The motion in the board meeting minutes will name all items approved as part of the Consent Agenda.

DOUGLAS COUNTY LIBRARIES
Board of Trustees Special Business Meeting
September 16, 2026
Castle Pines Library, Castle Pines, CO

President Nolan called the special business meeting to order at 5:30 p.m.

This meeting was held and was noticed in compliance with both Colorado Open Meeting Law and the Douglas County Libraries (DCL) Bylaws.

The following were present:

TRUSTEES: Pam Hampton, John Kennedy, Terry Nolan, Zach McKinney, Amy Windju, and Ted Vail

John Kennedy arrived at 5:38 p.m. A quorum was present with five present at 5:30 p.m. All appointed trustees were present. The District I seat remains vacant.

STAFF: Bob Pasicznyuk and Patti Owen-DeLay

STAFF PRESENT NOT PARTICIPATING IN THE MEETING: Casie Cook, Jill Corrente, Amber DeBerry, Amy Fischer, Juniper Hite, Chris Morelli, Tina Schmidt, Sylvester Sterling

LEGAL COUNSEL: Linda Glesne

SECURITY: Sergeant Nunn, Lone Tree Police Department

PUBLIC: Christine J. Harris, Bridget McEowen, Donna Lance, Sue Lewis, Tina Schmidt, Ken Greenberg, SM (unreadable), Anthonette Klinkerman, Gary Wachter, Lynne Wachter, David Levine, Heather Holloway, Nancy Student, Gilad Shwartz, Felice Entratter, Kim Carroll, Jess Byassee, Eldad Malha, Daniel Kopelman, Omri Livny, David Klinkerman

PUBLIC COMMENT

Anthonette Klinkerman – Douglas County resident, former teacher. Opposes restricting books.

Gary Wachter – Not a Douglas County resident. Against the book *You Are the Color*. Believes that the book speaks untruths about Israel and Zion and is inappropriate for children.

Lynne Wachter – Not a Douglas County resident. Agrees with viewpoint expressed by Gary Wachter.

David Levine – Former Douglas County resident. This book [*You Are the Color*] spreads hate through misrepresentation of what is happening.

Heather Holloway – Douglas County resident. Uphold keeping the book [*You Are the Color*] on the shelf and being able to sit with stories different than our own, especially when we don't agree with them.

Nancy Student – Douglas County resident. Retain *You Are the Color* in the library and in the children's section. Parents should decide.

Gilad Shwartz – Douglas County resident. Believes the book [*You Are the Color*] is demonizing to the Jewish people and wants the Jewish people gone. Move book to an appropriate age section.

Felice Entratter – Douglas County resident. Diverse population because Douglas County is welcoming. There are two sides for every story – an adult discourse. This book is not appropriate for children. Move book to older section or digital access.

Kim Carroll – Douglas County resident. This isn't a cultural issue; we cannot solve the history. This is a process issue, and the library has followed their process. Honor parental rights.

Jess Byassee – Douglas County resident. Echo what Ms. Carroll spoke. Supports the library following its process and parental rights.

Eldad Malha – Douglas County resident. Vital for us to talk about things. We are allowing bad things to happen through discourse, and books, etc. Wants his community to feel welcome and safe.

Daniel Kopelman – Not a Douglas County resident. This book [*You Are the Color*] does not belong in the children's section. It is not appropriate for children.

Omri Livny – Douglas County resident. Racist book [*You Are the Color*]. Children cannot determine what is true or not true. Children should have stories to dream and imagine.

LIBRARY BUSINESS

No one declared a conflict of interest on any of the action matters below.

CONSENT AGENDA

- Minutes of August 26, 2026, Business Meeting

MOTION 26-09-01SP: Hampton moved and the motion carried unanimously to approve the August 26, 2026, minutes. McKinney seconded the motion.

EXECUTIVE SESSION

Executive Session – Legal Advice on the Citizen Review Request escalated to the Library Board concerning the book *You Are the Color* by Rifk Ebeid.

Motion 26-09-02SP: Nolan moved and the motion passed unanimously to move into executive session pursuant to Colorado Revised Statute, Section 24-6-402(4)(b) for the purposes of receiving legal advice on specific legal questions related to the Citizen Review Request for *You Are the Color*, Federal Law, State Law, Colorado Library Law, Section 24-90-122, and library policy. McKinney seconded the motion.

Attorney Linda Glesne was present with the board in Executive Session.
The board entered Executive Session at 6:10 p.m.

RETURN TO OPEN MEETING

The board returned to the open meeting at 7:28 p.m.

Nolan stated: For the record, if any person who participated in the executive session believes that any substantial discussion of any matters not included in the motion to go into the executive session occurred during the executive session, or that any improper action occurred during the executive session in violation of Colorado Open Meeting Law, then speak now. Hearing none, the meeting continued.

Citizen Review Request (CRR) for *You Are the Color*

The board met with legal counsel to receive District legal advice in a confidential Executive Session to understand the legal parameters in dealing with an escalated Citizen Review Request.

Motion 26-09-03SP: McKinney moved and the motion passed five to one (with Windju opposing), on advice of legal counsel, that the Board finds that the Executive Director's Citizen Review Request review of February 2026 was complete and accurate, and they uphold it. Kennedy seconded the motion.

How was this decision made:

Based on legal advice around the escalated Citizen Review Request for *You Are the Color*, considering the applicability of cited Federal, State and Colorado Library Law, the Board's policies and legal precedence, the Board was instructed to consider the question of whether library policy was followed. Discussion of the contents of the book was not the purpose of the Board's review process, in accordance with policy and as limited by law. (Laws cited in the CRR include State Bill 24-216, Colorado Library Law Section 24-90-122 and Section 22-1-104(1)(a) Colorado Revised Statute.)

As per Colorado Library Law, Section 24-90-122 (3)(d) and Board policy, "A public library shall not reconsider the same library resource more than once every two years"; therefore, the Library will not consider a Citizen Review Request on this matter before 02/25/2028, as the Executive Director's response to the first CRR was included in the Board packet for the Board's 02/25/2026 business meeting.

TRUSTEE COMMENTS AND QUESTIONS

Nolan praised the Liane Moriarty author event with over 900 attendees as another premium experience.

UPCOMING BOARD MEETINGS

- September 30, 2026, Lone Tree Library, Lone Tree, CO
 - Board Study Session, 4:00 p.m. (Dinner at 5:00 p.m.)
 - Board Business Meeting, 5:30 p.m.

ADJOURN Motion 26-09-04SP: Vail moved to adjourn, McKinney seconded, and the motion carried unanimously. The meeting was adjourned at 7:36 p.m.

Respectfully submitted,

Ted Vail, Board Secretary
Minutes prepared by Patti Owen-DeLay
Approved

DRAFT

2027 Holiday Closure Schedule



HR/2026/07

Observed Holidays: All district facilities will be closed.

New Year's Day	Friday, January 1
Martin Luther King Day	Monday, January 18
President's Day	Monday, February 15
Memorial Day	Monday, May 31
Juneteenth	Saturday, June 19
Independence Day	Sunday, July 4
Labor Day	Monday, September 6
Thanksgiving Day	Thursday, November 25
Christmas Day	Saturday, December 25

Other Closures and Special Schedule Dates:

All district facilities will close at 3:00 pm on:

- Thanksgiving Eve, Wednesday, November 24
- Christmas Eve, Friday, December 24
- New Year's Eve, Friday, December 31

From: [Dan Avery](#)
To: [Owen-DeLay, Patti](#)
Cc: [Pasicznyuk, Bob](#)
Subject: Re: Library Board Appointment
Date: Thursday, September 24, 2026 3:35:42 PM
Attachments: [Outlook-Descriptio](#)
[Kim Ransom application.pdf](#)

CAUTION: This email originated from outside of our organization (DCL). Do not click links or open attachments unless you recognize the sender and know the content is safe.



Patti,

At its Administrative Meeting on Tuesday, the Board appointed Kim Ransom to replace Mr. Watson. I've attached Ms. Ransom's application, which contains contact information for your use.

I've briefly discussed process - if any - for Terry Nolan's seat with the Commissioners individually, but don't have collective Board direction yet. I'll ask for it next week.

Dan Avery | Deputy County Manager
Department of County Administration
Address | 100 Third St., Castle Rock, CO 80104
Direct | 303-814-4332 **Main** | 303-660-7401
Email | davery@douglasco.gov



From: Owen-DeLay, Patti <powendelay@dclibraries.org>
Sent: Thursday, September 24, 2026 2:10 PM
To: Dan Avery <DAvery@douglasco.gov>
Cc: Owen-DeLay, Patti <powendelay@dclibraries.org>; Pasicznyuk, Bob <rpasicznyuk@dclibraries.org>
Subject: Library Board Appointment

Caution: This email originated outside the organization. Be cautious with links and attachments.

Hi Dan,

Any word on:

1. Replacement for Taylor Watson? We have a board meeting next Wednesday.
2. Process for Nolan's seat open on 1/1/27?

Thank you for all your work on behalf of our community,
Patti



Patti Owen-DeLay | Executive & Board Administrator
303-688-7656 | powendelay@dcclibraries.org
Douglas County Libraries | Philip and Jerry Miller
100 S Wilcox | Castle Rock, CO 80104
DCL.org [Facebook](#) [X](#)

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RESOLUTION NUMBER 2026-09-01

A RESOLUTION OF APPRECIATION
HONORING THE SERVICE OF
Taylor Watson

AS A TRUSTEE
DOUGLAS COUNTY LIBRARIES BOARD

WHEREAS, Taylor Watson, as a Trustee on the Douglas County Libraries Board, serving March 2025 to August 2026, significantly contributed to the governance of the Library District;

WHEREAS, the performance of his duties and responsibilities was characterized by dedication to the District's vision of elevating our community by inspiring a love of reading, connection and discovery;

WHEREAS, Watson served as Vice-President, Chair of the Strategic Planning Task Force, and exemplified acting in a trustee capacity, with a keen eye and understanding of fiscal responsibility, in the fulfillment of his duties.

NOW, THEREFORE, BE IT RESOLVED BY THE DOUGLAS COUNTY LIBRARIES DISTRICT BOARD OF TRUSTEES THAT THE SERVICE OF TAYLOR WATSON AS A TRUSTEE IS DEEPLY APPRECIATED.

PASSED, APPROVED AND ADOPTED this 30th day of September 2026 by the Douglas County Libraries Board of Trustees, Douglas County, Colorado on a first and final reading by a unanimous vote.

Douglas County Libraries

Library District

Board of Trustees

Robert W. Pasicznyuk, Executive Director

TR Nolan, Board President

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 30, 2026

From: Casie Cook, Director of Finance

Subject: 2027 Draft Budget Highlights

ISSUE: The budget narrative and schedule offer the Board an early look at the 2027 Budget Draft, which will be formally presented at the October Board meeting.

DISCUSSION: The narrative and schedule organize expenditures according to the organization's priorities. The narrative also provides context to help explain the rationale behind the proposed allocations.

RECOMMENDATION: Staff recommends that the Board review the budget narrative and schedule and share any questions or guidance that could inform the final stages of 2027 Draft Budget development.

Douglas County Libraries

2027 Budget Narrative

The 2027 Budget supports Douglas County Libraries' vision to inspire reading, discovery, and connection while maintaining fiscal responsibility.

Revenue

Property tax revenue is projected to increase by approximately \$5,084,748 over 2026, primarily due to the restoration of full property tax collections following the \$5 million taxpayer rebate in 2026. The increase reflects a return to expected revenue under the approved mill levy. The County is forecasting slower growth around property taxes in the next 5 years.

Compensation

Total compensation expenses are budgeted at \$19,410,215, a 7% increase over 2026. The budget includes a 3.5% merit adjustment, a 1% compensation adjustment (to address market shifts) and bonus pool, and funding for 17 additional FTE to support the opening of the Sterling Ranch Library and to right-size support staff to the expanded footprint and FTE count.

Benefits

Benefits are budgeted at \$2,011,700, a 12% increase over 2026, driven primarily by additional Sterling Ranch staffing and routine cost increases. Benefits are transitioning to Colorado Employer Benefit Trust (CEBT) health coverage.

PERA is budgeted at \$3,268,680, a 14% increase over 2026, reflecting higher compensation costs due to additional staffing, and the employer contribution rate increase of approximately 1% effective January 1, 2027.

Library Content

Library content funding totals \$5,357,272, an approximate 13% increase over 2026. The increase supports collections for Sterling Ranch, e-content, growing systemwide demand, and a 5% inflationary adjustment.

Facilities

Facilities expenses total \$3,346,130, a 22% increase over 2026. Key drivers include \$350,000 in utilities for Sterling Ranch and a \$158,212 utility contingency to address rate volatility during the facility's initial operating period. The remainder reflects inflation and ongoing maintenance costs.

Technology, Equipment, & 3rd-Party Services

A total of \$2,332,940 is budgeted, a 20% increase over 2026. The increase is largely attributable to the Library's Integrated Library System (ILS) transition, including \$150,000 for the new system, \$116,000 for the existing system during transition, and \$50,000 for implementation consulting. Remaining increases reflect inflationary and contractual cost changes.

Capital Expenditures

Capital expenditures are budgeted in three categories:

- Maintenance: \$1,490,780 for furniture, facility improvements, and other investments that strengthen the Library's visibility and public presence. Includes a \$224,000 Infrastructure Services capital contingency for unforeseen project costs.
- Legal Compliance: \$230,000 for compliance-related and legal infrastructure needs.
- Safety and Security: \$373,090 for IT infrastructure, access controls, emergency preparedness, and cybersecurity enhancements.

New Construction

\$11,151,889 is budgeted for Sterling Ranch Year 3 construction, supporting continued development and expansion of library services.

In Summary

These investments are funded through operating funds and designated capital reserves, enabling the Library to maintain safe, welcoming, and future-ready facilities while remaining fiscally responsible.

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 30, 2026

From: Bob Pasicznyuk, Executive Director, and Casie Cook, Director of Finance

Subject: 2027 Compensation Budget

ISSUE: Staffing adjustments are needed to support the opening of the Sterling Ranch Library and to right-size Infrastructure Services based on current service demands.

DISCUSSION:

The 2027 compensation budget includes staffing changes corresponding to the size and complexity of the new library location. The Castle Pines, Roxborough, and Louviers libraries share individual contributors, supervisors, and support staff. These staffing additions will allow Castle Pines and the new Sterling Ranch Library to operate as individually supported branches like our other libraries.

- Customer Experience contributors and supervisors – 12 FTE (\$405K)
- Community Engagement – 2 FTE (\$83K)

Additionally, 3 FTE (\$142K) will be added to Infrastructure Services support across HR, IT, and Facilities to right-size support staffing for the expanded footprint and bring staffing levels in line with the established model, which accounts for both organizational FTE and square footage.

The total 2027 compensation budget is \$19.4 million, representing an increase of approximately \$1.2 million, or 7%, over 2026. The 2027 partial-year cost of the proposed new positions is \$630K. These expenses were anticipated in the long range plan.

The remaining increase reflects funding for the annual 3.5% merit program, 1% bonus and adjustment pool, and other compliance-related changes included in the 2027 budget.

RECOMMENDATION: Approve the 2027 compensation budget as proposed. The requested staffing additions will support the successful opening of the Sterling Ranch Library, maintain service standards across the district, strengthen operational capacity, and position Douglas County Libraries to meet the needs of a growing community while continuing to deliver high-quality library services.

Douglas County Libraries
2027 Budget Highlights

	2026	2027	
	Approved Budget Highlights	Draft Budget Highlights	YoY % Change
Revenue			
Property taxes	\$36,593,985 *	\$41,678,733	14%
Operating Expenditures			
Salaries & Wages	\$18,174,034	\$19,410,215	7%
Benefits	\$1,801,493	\$2,011,700	12%
PERA	\$2,871,497	\$3,268,680	14%
Library Content	\$4,753,185	\$5,357,272	13%
Facilities	\$2,753,462	\$3,346,130	22%
Technology	\$1,937,064	\$2,332,940	20%
Capital Expenditures			
Maintenance	\$1,740,983	\$1,490,780	-14%
Legal Compliance	\$766,150	\$230,000	-70%
Safety & Security	\$435,010	\$373,090	-14%
New Construction	\$11,495,216	\$11,151,889	-3%
Income Statement Net Position	\$ (12,648,483)	\$ (9,373,706)	-26%

* 2026 property taxes revenue included a \$5M taxpayer
 rebate

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 22, 2026

From: Bob Pasicznyuk

Subject: Bylaws Changes

Issue Summary: Our library builds trust to achieve results. Clarity is integral to trust and results, setting boundaries on executive and board power and relationships.

The following bylaws changes were modeled after bylaws in use at the Douglas County School District and beyond. These proposed bylaws' changes have been reviewed by the library's Executive Committee and the library General Counsel.

Recommendation

Accept I move to accept the bylaws changes as presented.

Alternative I move to accept the bylaws changes as presented with any exception or change.

Alternative No action.

DOUGLAS COUNTY LIBRARIES BOARD BYLAWS

Adopted December 6, 2023, amended 1/31/2024, 06/26/2025, 10/30/25, 02/25/2026

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TABLE OF CONTENTS

BYLAWS.....	3
ARTICLE I. NAME.....	3
ARTICLE II. BOARD OF TRUSTEES (the "Board").....	3
ARTICLE III. POWERS AND RESPONSIBILITIES	6
ARTICLE IV. OFFICERS.....	7
ARTICLE V. DUTIES OF OFFICERS	8
ARTICLE VI. MEETINGS.....	8
ARTICLE VII. PARLIAMENTARY AUTHORITY.....	10
ARTICLE VIII. COMMITTEES.....	11
ARTICLE IX. EXECUTIVE DIRECTOR.....	11
ARTICLE X. LIBRARY POLICIES	12
ARTICLE XI. ANNUAL REPORT.....	12
ARTICLE XII. FISCAL YEAR.....	12
ARTICLE XIII. AMENDMENTS TO BYLAWS AND POLICIES.....	12

BYLAWS

ARTICLE I. NAME

This organization shall be known as the DOUGLAS COUNTY LIBRARIES (the "Library"), organized under and by virtue of the Colorado Library Law, Sections 24-90-101 *et seq.*, C.R.S., and established by the County of Douglas, on November 20, 1990, with Board of County Commissioner Resolution No. 149 as Douglas Public Library District. On June 26, 2003, the Library Board moved to change the name from Douglas Public Library District to Douglas County Libraries. Notwithstanding this change in name, the Douglas County Libraries were established as and are a public library district and a separate taxing authority, as defined in Colorado Library Law.

ARTICLE II. BOARD OF TRUSTEES (the "Board")

Section 1. Trustees. The governance and control of the Library shall be vested in a board of seven (7) local government official trustees (individually a "Trustee" and collectively, "Trustees") appointed in accordance with Colorado Library Law to act as the Legislative Body of the Library. Trustees must reside within the Library boundaries and maintain any other requirements related to their office set forth by law. There are two Trustees from each of the three Douglas County Commissioner districts and one at-large Trustee. All Trustees shall be approved by at least a 2/3 vote of the Commissioners prior to the start of their term. Notwithstanding each Trustee's geographic constituency group, Trustees are local government officials with fiduciary responsibility to the Library and shall represent and act in the best interests of the Library as whole for the benefit of the people.

Section 2. Terms, Term Limits and Reappointments. A Trustee's term of office shall be three (3) years, commencing on January 1 and ending December 31 of the year preceding a new appointment term. After serving one (1) term, a Trustee shall be eligible for reappointment in accordance with the provisions of Colorado Library Law and these Bylaws. No Trustee shall serve more than four (4) consecutive full terms in addition to completing any unexpired term. A former Trustee may reapply to serve on the Board again for at least one year after completion of their last consecutive term.

Section 3. Vacancies. A vacancy on the Board shall be filled as soon as practical for the remainder of an unexpired term in the manner in which Trustees are regularly appointed pursuant to Colorado Library Law. A notice of all such vacancies shall be posted in accordance with the current Trustee appointment process.

Section 4. Authority of the Board of Trustees. The Board is the governing authority and legislative body of the Library. Apart from each Trustee's normal function as part of the Board, or as directed by the Board, no Trustee may commit the Library to any policy, act or expenditure, or take any action (express or implied) that departs from their fiduciary duty. The Board may delegate to officers, employees and agents of the Library any or all administrative powers.

Section 5. Governing Laws. The Board shall comply with and be guided by applicable state laws and regulations, including the Colorado Library Law, the Colorado Constitution, applicable federal laws and regulations and the Constitution of the United States.

Section 6. Board as a Whole. Trustees should function as part of the whole Board. Issues should be brought to the attention of the Board as a whole, rather than to individual members selectively. Individual Trustees should go through a Board vote to make directives to staff.

- While individual Board members or committees may request information or assistance, the Executive Director may refuse such requests that require, in his/her opinion, an inappropriate amount of staff time, funds, or deal with operating issues or are not authorized by the Board as a whole.
- Individual Board members have no authority to supervise or direct the Director.
- Individual Board members will not exercise individual authority over the organization related to operations or policy direction.
- Members' interaction with the Executive Director or with staff must recognize the lack of authority vested in individual members except when explicitly authorized by the Board.
- The relationship between the Executive Director and individual Board members, including officers, is expected to be collegial, not hierarchical.
- Except for participation in Board deliberation about whether reasonable interpretation of Board policy has been achieved by the Executive Director, members will not express individual judgments of performance by employees.

Section 7. Authorization. The President of the Board is the authorized spokesperson for the Board. However, the Board may, from time to time, determine, for a specific purpose or event, to delegate spokesperson authority to another Trustee. In the absence of such express authorization, no Trustee other than the President shall make any public statement on behalf of the Library.

Section 8. Compensation/Expense Reimbursement. Trustees shall not receive a salary or other compensation for their services as Trustees. Trustees shall be entitled to reimbursement for necessary and reasonable travel and associated expenses actually incurred while performing official Library business. Trustees will follow current policy and procedures regarding reimbursements.

Section 9. Ethics. Trustees shall conduct themselves as local government officials in a position of public trust, in accordance with these Bylaws and applicable Colorado laws, including the Code of Ethics for public officials, Sections 24-18-101, *et seq.*, C.R.S. (the "Code of Ethics") and Article XII of the Colorado Constitution. Trustees shall avoid situations in which their personal interests might be served or in which financial benefits inure to them at the expense of library users, colleagues, or the Library. Trustees shall devote their personal attention to the duties required of their office and shall at all times act in accordance with the public trust and confidence expected of a Trustee as a fiduciary and steward of the Library's public finances. Trustees shall disclose any and all potential conflicts of interest during the appointment process. If during the course of

Board business, an area of potential conflict of interest or the appearance of such develops for a Trustee, that Trustee shall immediately make full disclosure to the Board and, if required in order to ensure compliance with the Code of Ethics, immediately cease participation in both discussion and voting relative to the matter. Specific areas of potential conflict, without limitation, are described in this Section, below.

- Trustees may not in their private capacities negotiate, bid for, or enter into a contract with the Library in matters in which they have a direct or indirect financial interest.
- Trustees shall recuse themselves from Board discussion, deliberation and vote on any matter in which the Trustee, an immediate family member (defined as husband, wife, domestic partner, brother, sister, child, or grandchild, including step-relationships of each of the defined relationships) or an organization with which they are associated as a principal has a material financial interest. Such recusals shall be reflected in the meeting minutes for the relevant meeting.
- Trustees shall not receive anything of value that could or should reasonably be expected to influence their vote or other official action.
- Trustees shall respect the confidential nature of Library business while adhering to the Colorado Open Records Act (“CORA”), Sections 24-72-200.1 *et seq.*, C.R.S. and all other applicable laws governing freedom of information.
- Trustees shall conduct themselves with an eye to the public trust, deserving of the public confidence and the integrity of the office as a fiduciary. A local government official whose conduct departs from their fiduciary duties shall bear the personal liability a private fiduciary would suffer for abuse of their trust.

Section 10. Support of Douglas County Libraries Foundation. All trustees are expected to make an annual donation in any amount of \$1.00 or greater to the Douglas County Libraries Foundation. This supports the Foundation in their work when seeking grants as an entity organized to wholly support Douglas County Libraries.

Section 11. Allegations. If an allegation is made against either the Executive Director or a member of the Board, the Board will follow the Complaint Procedure Policy.

Section 12. Removal. A Trustee may be removed only following a majority vote of the Board, and in accordance with Colorado Library Law, by a majority vote of the appointing legislative body, and only upon a showing of good cause. “Good cause” may include but not be limited to: a willful, wanton or deliberate breach of the Colorado Library Law, the Bylaws, or Policies adopted by the Board; unlawful conduct; causing significant harm to the Library, either materially or to its reputation; failure to diligently perform the duties of a local government official outlined herein; or failure to attend three consecutive regular monthly business meetings of the Board without an excused absence in any 12 month period. The Board does, however, recognize extenuating circumstances and may waive or authorize an excused absence from the attendance requirement.

ARTICLE III. POWERS AND RESPONSIBILITIES

The Board shall have all those powers and duties provided by Colorado Library Law C.R.S. 24-90-109, as such may be revised from time to time, and those powers and responsibilities otherwise set forth for local government officials not in conflict with the specific requirements of Colorado Library Law. In addition, the Board shall have all those powers necessary or incidental to the specific powers granted by statute, and nothing herein shall be construed as limiting the powers of the Board as granted by Colorado Library Law.

Section 1. Duties and Responsibilities

Legal responsibility for the overall governance of the Library is vested in the Board. Those Board responsibilities shall include all powers and duties authorized by the Colorado Library Law, without limitation, including:

- Adoption of Bylaws and Policies for both Board guidance and governance of the Library.
- Acquisition, custody, care, and sale, disposal or transfer of all Library real or personal property.
- Financial oversight of the Library **by periodic review of investments, accepting such gifts or money for Library purposes as it deems expedient, completion of an annual audit, adoption of annual budgets, setting the mill lev and making appropriations for the ensuing fiscal year.**
- Authorization of Library contracts, purchasing, borrowing, and bonding for the Library in accordance with the Authorization of Expenditure Policy.
- Employment and evaluation of the Executive Director, who shall be the executive and administrative officer of the Library acting on behalf of the Board and shall perform the functions set forth in Section 24-90-109, C.R.S. including:
 - Implementation of the policies adopted by the Board, including all day to day operations **and the means and methods of such management;**
 - Recommending individuals for employment;
 - Performing all acts necessary for the orderly and efficient management and control of the Library;
- Adoption of a policy for the purchase and review of library materials and equipment on the recommendation of the Executive Director **and for the review of such materials and equipment following the requirements of Section 24-90-122, C.R.S.**
- ~~Annual audit approval and periodic investment monitoring.~~
- The power to ~~determine the amount of the maximum mill levy necessary to maintain and operate the Library during the ensuing year and/or~~ initiate an election to increase the maximum mill levy to support the Library.
- Planning for current and future needs of the Library and the community it serves.
- The Board shall ~~conduct~~, on an annual basis, **conduct** written evaluations of the Board's performance, **and make a plan for development to seek greater knowledge and skill to govern more effectively.**

Section 2. End Statements.

The Board will describe what success looks like for the organization (clarity) through end statements. End statements can be any combination of specific goals, metrical achievements, meritorious awards, a financial position, distinct qualities, and more. Annually, the Board will create or validate these ends directing organizational achievement.

Section 3. Governance vs Operations

The declaration that the Board's role is about "ends" presumes that the Board does not direct the means. In our current library parlance, the Board governs and staff operates. It is not a Board members role to leverage their professional experience to achieve personal operating decision making judgment or oversight, (see examples below).

- A trustee with building experience wishes to oversee facilities;
- A trustee with financial expertise wishes to act as CFO;
- A trustee who is a lawyer wishes to become the library's general counsel.

The Board must discipline itself and one another toward higher-level oversight and governance.

ARTICLE IV. OFFICERS

Section 1. Officers. The officers of the Board shall consist of a president, a vice-president, and a secretary or such other officers as the Board deems necessary. These officers shall perform the duties prescribed by these Bylaws. Nothing herein shall prevent the Board, at its discretion, to combine offices as long as the same individual does not hold both the office of president and secretary. The Board reserves the right to delegate duties to the Executive Director.

Section 2. Election. The Board shall elect officers annually from among current membership of the Board at the Annual Meeting.

Section 3. Terms of Office. Officers shall begin their terms of office at the next regular meeting immediately following the Annual Meeting at which they are elected to office, and they shall serve thereafter for a term of one (1) year, or until their successors are elected, whichever is longer.

Section 4. Officer Vacancies. A vacancy in any office, however occurring, may be filled by majority vote of the Board at the next regular or special meeting of the Board for the unexpired portion of the term.

Section 5. Removal. Any officer may be removed from office for a failure to discharge their duties, by a majority vote of the Board at a regular or special meeting whenever in the Board's judgment the best interest of the Library will thereby be served. The Trustee(s) seeking such action shall give written notice to the officer five days prior to voting on such an issue.

ARTICLE V. DUTIES OF OFFICERS

Section 1. President. The President shall, subject to the direction and supervision of the Board, be the principal executive officer of the Library. The President shall preside over and determine the manner of operation for all meetings of the Board. The President shall sign, either by manual, ~~facsimile~~, or electronic signature, any leases, deeds, mortgages, contracts and other instruments which the Board has authorized to be executed; and in general, shall perform all duties incident to the office of president and such other duties as may be prescribed by the Board from time to time. The President is the authorized Board media spokesperson.

Section 2. Vice-President. The Vice-President shall assist the President and shall perform such duties as may be assigned by the President or the Board. In the absence of the President, the Vice-President shall have the powers, and perform the duties, of the President.

Section 3. Secretary. The Secretary shall review and recommend approval of the minutes of the regular meetings of the Board; and perform all duties incident to the office of the secretary and such other duties as from time to time may be assigned by the President or by the Board.

Once approved by the Board, staff will post the approved minutes on the Library's public website. Additionally, staff will retain executive session recordings until the date of legal disposal.

ARTICLE VI. MEETINGS

Section 1. Meeting Participation. Under Colorado Open Meetings Law ("COML") Section 24-6-402(1)(b), C.R.S., meetings may be convened for the purpose of conducting public business in person, by telephone, electronically or by other means of communication, provided the public may hear and the Trustees may be heard, or if through a written form of communication (i.e., a properly noticed email meeting), the public and the Trustees may each read the communications. Although most Board meetings are held with participating Trustees physically present, Trustees may attend meetings, establish quorum and vote via these alternative means in the case of either regular or special meetings of the Board. Notwithstanding the quorum requirements of the COML and these Bylaws, it shall be deemed to be a "meeting" requiring public notice whenever three or more Trustees meet to discuss public Library business; however, in any such meeting without a quorum no official Board action shall be taken.

Section 2. Attendance. Trustees are expected to attend all assigned meetings. Absences will be excused in an emergency, or when trustees notify the Board President and/or the Executive and Board Administrator prior to the meeting due to a work conflict, illness, or a previously scheduled personal commitment.

Section 3. Regular Meetings. Regular meetings of the Board shall be held monthly no less frequently than eight (8) times per calendar year when possible, and be held at the Library facilities for the purpose of transacting any business that may come before the

Board and to disseminate information to the community at large regarding library operations.

Once a year, prior to the next calendar year's start, the date and location of each regular meeting for the upcoming year shall be determined and approved by the Board. All business of the Board shall be conducted only during such regular meetings or at special meetings hereinafter provided for, and all such regular and special meetings shall be open to the public, subject to the right of the Board to meet in executive session.

Section 4. Special Meetings. Special meetings may be called by the President, the Executive Director, or any three (3) Trustees by informing the President in writing and then the President will coordinate the date, time and place of such meeting and the purpose for which it is called at least twenty-four (24) hours prior to said meeting. Minutes will be taken at all special meetings wherein Board actions are taken and will be part of the public record.

If due to unforeseen and urgent circumstances there is not sufficient time to call a special meeting because a matter is an emergency and requires immediate attention, the President or the President's designee may take a vote by electronic means or in person, with such vote to be ratified at the next regular or special meeting of the Board. If any emergency action taken is not ratified, then it is deemed rescinded.

Section 5. Public Participation in Meetings. The public is invited to all regular and special meetings of the Board and may speak, at the Board's discretion, during a portion of the agenda designated for public comment. All public comments shall be subject to the following procedures:

- Only one speaker will be acknowledged at a time. A speaker may only speak once per public comment period.
- Each speaker will have three minutes to address the Board. The Board may, in their sole discretion, limit the total amount of time dedicated to public comment or reduce the amount of time each speaker has to address the board to accommodate for special circumstances.
- Speakers must direct their comments to the Board as a whole, not to individual Board members, **staff** or the audience.
- Speakers shall be courteous in their language, presentation and remarks. Speakers shall not make personal attacks, use profanity, or engage in other inappropriate conduct. **Speakers shall comply with the Douglas County Libraries Code of Conduct.**

A speaker who fails to follow the foregoing procedures may be removed from the meeting.

Any individual who has been invited to speak and is listed on the agenda is not restricted by the above procedures, however, such individual shall follow Board direction as to any presentation requirements, including expected duration of discussion, and shall adhere to the requirements for public decorum and courtesy outlined herein.

Expectations for Board Members during public comment:

- The Board President as meeting chair will oversee public comment, welcoming speakers, sharing public speaking expectations and handling any issues with conduct.
- Board members will not engage in conversation with speakers.
- Board members will listen quietly and respectfully acting in mind of the Library brand and values.
- If Board members feel there is an issue with conduct that the chair is not addressing, they will request a “Point of Order” discussion with the chair.

Section 6. Notice. All meeting notices shall be publicly posted on the Library’s website no later than twenty-four hours prior to any meeting in accordance with COML, Sections 24-6-401, *et seq.*, C.R.S.

Section 7. Annual Meeting. The first regular meeting of each year shall be designated as the Annual Meeting. At the Annual Meeting, Board officers shall be elected for the ensuing year.

Section 8. Quorum. A majority of the total membership of the Board shall constitute a quorum necessary for the transaction of any business to come before any regular or special meeting, including votes on emergency action. The act of the majority of Trustees constituting a quorum at a regular or special meeting shall be the act of the Board.

Section 9. Voting. All Trustees, including the Board President, shall vote, unless such voting is contrary to the Code of Ethics. A Trustee may call for a roll call vote at any time. Voting by telephone participation is allowed; however, voting by proxy is not. Properly noticed email polls of Trustees may be taken with results to be confirmed and recorded into the minutes at the next regular Board meeting.

Section 10. Minutes. Minutes shall be taken of regular meetings of the Board and special meetings where a vote is taken and posted following Board approval on the Library’s website.

ARTICLE VII. PARLIAMENTARY AUTHORITY

Section 1. Parliamentary Authority. Parliamentary Authority. The Board has adopted the *Standard Code of Parliamentary Procedure*, current edition (“Parliamentary Procedure”), as the parliamentary authority to govern board meeting procedures. Any updates to version will be effective and noted via memo at the Board’s annual meeting each year.

Section 2. Parliamentary Determinations. The Board President shall be the presiding officer over the conduct of meetings and shall provide, in specific instances, such parliamentary rulings as are necessary for meeting order. When the Board President is part of the issue in any parliamentary decisions, the Board by a passing motion may appoint another Trustee to be the presiding officer over the business item at issue.

Section 3. Closing Discussion. Any Trustee may present a motion to close debate and vote immediately to bring discussion on a motion to a close. Should a motion to close debate pass by two-thirds vote, the presiding officer shall thereafter call the question on the pending motion.

Section 4. Point of Order. In order to enforce the rules of Sturgis, any Trustee may raise a point of order. The presiding officer must make a ruling on the point of order or refer it to the Board for further discussion.

Section 5. Suspending the Rules. Any Trustee may present a motion to suspend the procedural rules. This motion must be limited to a specific purpose and a specific time frame and must pass by two-thirds vote.

ARTICLE VIII. COMMITTEES

Section 1. Purpose. The Board may establish such committees as deemed necessary to assist in its works. The motion to form such committee shall state the purpose, timeline, composition and authority of such committee, including committee members in a committee charter.

The purpose of committees is to make recommendations on specific topics or issues to the Board to allow more focused Board consideration of the same. No Board committee will have more than three Trustees. This limit is intended to distinguish between the Board and committees thereof and ensures that the Board cannot and does not act through committees. Board committee meetings of three Trustees shall be publicly posted on the Library's website no later than twenty-four hours prior to any meeting in accordance with COML, Sections 24-6-401, *et seq.*, C.R.S.

ARTICLE IX. EXECUTIVE DIRECTOR

Section 1. Employment. The Executive Director shall be selected by the Board and shall be employed by written contract with the Library for which the Executive Director shall serve as chief executive officer of the Library.

Section 2. Duties. The Executive Director, under the supervision and direction of the Board, shall perform (or delegate to appropriate staff members) all duties incident to the position of Executive Director and such other duties as may be prescribed by the Board, including but not limited to the following:

- Assist the Board in formulating basic programs and policies.
- Implement programs, policies, and professional practices as adopted by the Board.
- Responsibility for fiscal matters of the Library, except that the Board shall have exclusive control of the disbursement of the finances of the Library.
- Prepare the proposed annual budget for the Library for presentation to the Board.
- Prepare monthly reports of activities of the Library for presentation to the Board.

- Administer Library personnel, including employ, train, evaluate, compensate, motivate and discharge staff in compliance with all applicable laws and regulations, the Library Staff Handbook guidelines, and Board policies.
- Direct and coordinate the work of the Library employees.
- Approve all budgeted, normal and recurring operational expenditures, excepting those requiring specific Board approval.
- Prepare the agenda for each Board meeting according to Board directive.
- Responsibility for public information, community relations, development, fundraising and special projects as assigned by the Board.
- Arrange for the care and maintenance of buildings, equipment and materials for the Library.
- Evaluate library services, technology and operations and assist the Board with short-term and long-range planning.
- Represent the Library, as appropriate, to all of its constituents and to professional and institutional organizations.
- Be responsible for any other reasonable duties, consistent with the foregoing, as may be prescribed by the Board.
- Conduct all Library business at the highest possible ethical standards and identify any real or potential conflicts of interest to the Board in a timely manner.

Section 3. Removal. The Executive Director may be removed by the affirmative vote of a majority of the Board constituting a quorum whenever, in its judgment, the best interest of the Library will be served thereby, and in compliance of the Executive Director's contract.

ARTICLE X. LIBRARY POLICIES

The Board shall establish and adopt Library policies, which shall ensure cost-effective and efficient publicly supported free Library services to Library residents in accordance with Colorado Library Law. These policies shall be available to the public.

ARTICLE XI. ANNUAL REPORT

At the close of each year the Board shall make a report to the County Commissioners of Douglas County, in accordance with the Colorado Library Law, Section § 24-90-109 C.R.S.

ARTICLE XII. FISCAL YEAR

The Fiscal Year of the Library shall begin on the 1st of January of each year and end on the 31st of December of such year.

ARTICLE XIII. AMENDMENTS TO BYLAWS AND POLICIES

Notice of proposed Bylaws or Policy changes must be in written form and received by all Trustees at least five (5) days prior to the first reading.

Bylaws and Policies may be added, altered, amended or repealed on first reading at any regular or special meeting of the Trustees if all members of the Board are present and

the vote is unanimous. If all members are not present or the vote is not unanimous, but the majority present votes in favor of the Bylaw or Policy amendment proposal, it will be presented at the next regular meeting of the Board, at which time it can be added, altered, amended or repealed by a simple majority of the Board present and voting.

These Bylaws shall at all times conform to the Colorado Library Law, as it may be revised and amended from time to time. Such amendments as may be necessary to affect such conformation shall be automatic and these Bylaws shall be updated from time to time by the act of the Board to reflect such statutorily mandated automatic amendments.

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 30th, 2026

From: The Senior Leadership Team

Subject: Updates to Board Policies

ISSUE:

Staff reviewed Risk Management, Library Facilities and Spaces, Access – Customer Privacy, Authorization of Expenditure, and Purchasing policies and identified revisions to clarify language, address relevant matters, and align with applicable state statutes, where appropriate.

DISCUSSION:

Risk Management Policy: The updated policy retains existing concepts while clarifying the policy scope, responsibilities of the Board and Executive Director, and the Risk Management Program and supporting plans and procedures.

Library Facilities and Spaces Policy: The Libraries Facilities and Spaces Policy updates clarify that the Customer Code of Conduct applies to the public using designated exterior library areas for free-speech activity.

Access Policy - Customer Privacy: The updated Customer Privacy section of the Access Policy addresses authorization for others to pick up items on hold and clarifies that anyone possessing a physical library card or card number is presumed to be the account holder or have the account holder's permission to access the account.

Authorization of Expenditure Policy: Updates include substantive changes to the current Request for Authorization (RFA) process, including:

- Eliminate secondary Board approval for larger, budgeted capital projects. Approval would occur through adoption of the annual budget, with individual projects identified in the draft and final budgets.
- Maintaining Board oversight of capital expenditures through quarterly budget-to-actual reporting to monitor project expenditures and progress.
- Aligning construction bidding requirements with state statute (Title 32). DCL will follow the statutory public bidding threshold, currently \$120,000, which will be adjusted for inflation every five years beginning in 2028.
- Maintaining public bidding and documentation procedures for applicable capital projects and procurement decisions.
- Maintain existing Board approval requirements for unbudgeted expenditures, real estate transactions, intergovernmental agreements (IGAs), and financing transactions.

Purchasing Policy: Removed the five-year general contractor selection requirement and added “pre-qualification of recurrent services subject to updated costs of services.” This allows DCL to retain an existing general contractor while requiring an updated cost-of-services addendum when direct service costs increase.

RECOMMENDATION: Staff recommend the Board move to approve the revisions to the Risk Management, Library Facilities and Spaces, Access Policy - Customer Privacy, Authorization of Expenditure, and Purchasing policies as presented.

DRAFT Authorization of Expenditure Policy

It is the policy of Douglas County Libraries (the "Library") to monitor expenditure of public funds judiciously, ensuring compliance with annual budgetary appropriations, adherence to purchasing policies, and accuracy of reporting in the financial statements.

The Board authorizes expenditures through the annual budget process. Spending is monitored through quarterly financial statements comparing actual expenditures to budgeted amounts. The Executive Director shall provide quarterly financial statements to the Board for the first three quarters of each year and the annual audit for the final quarter.

Executive Director Spending Authority

The Executive Director has spending authority for budgeted, normal, recurring operating expenditures, except where Board approval is required under this policy.

Budgeted, normal, recurring operating expenditures include, but are not limited to:

- Library content
- Programming fees
- Materials and supplies
- Costs incurred in connection with the operation and maintenance of Library facilities
- Costs incurred with the operation and maintenance of Library software, telephone, internet, data storage, and other information technology platforms
- Professional service fees and fees paid to contractors for upgrades to existing facility and technology platforms
- Consulting and advisory services
- Furniture, computers, and equipment not otherwise requiring Board approval
- Library-wide merit increase rates and salary range adjustments
- Employee benefit plans
- General liability, property, and workers' compensation insurance coverage

Board Approval Requirements

The Board authorizes expenditures through adoption of the annual budget. Notwithstanding such authorization, the following require specific Board approval:

- Non-budgeted expenditures in excess of \$50,000
- Intergovernmental agreements
- Facility leases and real estate transactions

- Financing transactions

Signature Authority

Authorizing signatures for the expenditure of funds and contractual obligations shall be governed by the Library's Purchasing Policy.

Library Directors are authorized signatories for budgeted expenditures within their delegated authority and in accordance with Library procedures.

The President of the Board, or designee, is the authorized signatory for intergovernmental agreements and real estate documents, including facility leases, financing documents, bond documents, and other documents as required by regulation or statute, which have been reviewed and approved by motion or resolution of the Board.

DRAFT Purchasing Policy

The Board assures the efficient and responsible use of taxpayer dollars through fair and consistent purchasing practices, maximum practicable competition, and compliance with applicable Colorado statutes. The Executive Director, or designee, is responsible for implementing this policy and establishing administrative procedures consistent with its requirements.

General Purchasing Requirements

Purchasing procedures shall provide for:

- Purchases under cooperative purchasing ventures with other library organizations or governmental agencies
- Sole source purchases when justified
- Emergency purchases when necessary to protect Library operations, facilities, or public safety
- Competitive solicitations, when appropriate to obtain best value
- Pre-qualification of recurrent services subject to updated cost of service

Contract Requirements

Purchasing procedures with respect to contracts shall provide for:

- Use of standard Library or industry templates, where appropriate
- Annual appropriation language, when applicable

- Appropriate contract review and approval prior to execution

Procurement and Approval Requirements

The Executive Director, or designee, shall establish purchasing and procurement procedures consistent with this policy.

Awards shall be made to the responsive and responsible vendor whose quote, bid, or proposal is determined to be in the best interest of the Library, considering price and other relevant evaluation factors, and not necessarily price alone.

Board Approval

For purchases requiring Board approval under the Authorization of Expenditure Policy, the recommended award and associated expenditure shall be presented to the Board for approval at a public meeting.

Existing Policies for reference:

AUTHORIZATION OF EXPENDITURE POLICY

It is the policy of Douglas County Libraries (the "Library") to monitor expenditure of public funds judiciously, ensuring compliance with annual budgetary appropriations, adherence to purchasing policies, and accuracy of reporting in the financial statements. Expenditures are authorized by the Board through the annual budget process, and spending is monitored via quarterly financial statements that compare actual spending to budgeted amounts. The Executive Director will provide quarterly financial statements to the Board for the first three quarters of each year, and the audit for the final quarter of the year.

The Executive Director has spending authority for all budgeted, normal, recurring operating expenditures. Budgeted, normal, recurring operating expenditures include, but are not limited to:

- Library content;
- Programming fees;
- Materials and supplies;
- Costs incurred in connection with the operation and maintenance of Library facilities;
- Costs incurred with the operation and maintenance of Library software, telephone, internet, data storage, and other information technology platforms;
- Professional service fees and fees paid to contractors for upgrades to existing facility and technology platforms;
- Consulting and advisory services;
- Those items of furniture, computers, and equipment not requiring specific Board approval as noted below;
- Library-wide merit increase rates and salary range adjustments;
- Employee benefit plans; and
- General liability, property, and workers' compensation insurance coverage.

The following require specific approval by the Board, and are not considered budgeted, normal, or recurring:

- Non-budgeted items in excess of \$50,000;
- Intergovernmental agreements;
- Capital expenditures of \$75,000 or more;
- Facility leases and real estate transactions; and
- Financing transactions.

Authorizing signatures for the expenditure of funds and contractual obligations are designated as follows:

- Library Directors are the authorized signatories for all budgeted normal, recurring operating expenditures as defined above.
- The President of the Board or designee is the authorized signatory for intergovernmental agreements and real estate documents, including facility leases, major capital expenditures, refinancing documents, bond documents, and other documents as required by regulation or statute, which have been reviewed and approved by motion or resolution of the Board.

Adopted on December 6, 2023.

PURCHASING POLICY

The Board assures the most efficient use of taxpayer dollars through the use of fair and consistent purchasing procedures, maximum market competition, and compliance with Colorado statutes. The Executive Director is responsible for maintaining the proper procedures.

Such procedures shall provide for:

- Purchases under cooperative purchasing ventures with other library organizations or government agencies.
- Purchases from sole source suppliers, when only one vendor can meet specifications.
- Solicitation of multiple quotes to ensure competitive pricing, when possible.

In addition, Douglas County Libraries ("Library") purchasing policies and procedures with respect to contracts shall provide for:

- Use of standard Library or industry templates, where considered appropriate.
- Inclusion of language requiring annual appropriation.

Specific to major capital projects requiring a general contractor (estimated costs in excess of 75k), the Library will perform due diligence when selecting a general contractor, via a formal competitive selection process, at least every 5 years. The Board is responsible for approving the project's scope and resource allocation. For all other expenditures requiring Board approval, the award of formal bids shall be made by the Board at a public meeting. The Board shall not be bound to select the supplier submitting the lowest dollar bid and reserves the right to accept the bid deemed to be in the best interest of the Library. Further, the Board may reject any and all bids and may waive, at its discretion, any informalities, irregularities, omissions, or deficiencies contained in said bid.

Adopted on December 6, 2023 and updated April 24, 2024.

CURRENT RISK MANAGEMENT POLICY

Douglas County Libraries (the "Library") recognizes its responsibility to manage public funds in a responsible manner, which includes identifying, addressing, and appropriately managing any risks that may affect:

1. The safety and well-being of its customers and employees;
2. Its financial stability, or
3. Its ability to achieve its mission of providing services to the community; and
4. Business continuity plans and measures for high-risk events.

The Library considers loss or interruption of services of significant duration to be unacceptable and intends to manage operations to mitigate that risk. The Executive Director will ensure that risks are assessed annually and the related risk mitigation programs are evaluated and updated as appropriate.

The Library's risk management programs shall include, but not be limited to, a comprehensive insurance program, which includes public officials' liability coverage for the Executive Director and Trustees; employee safety training programs; and maintenance of a disaster recovery plan. In the event of a natural or human made disaster, act of terrorism, or other disruption to Library operations, the Executive Director is given authority to act as needed outside the scope of authority otherwise delineated in policy. The Executive Director will annually report to the Board, reviewing and describing risk mitigation products and strategies in place to safeguard the Library, its assets, and operations.

Adopted on December 6, 2023.

PROPOSED NEW RISK MANAGEMENT POLICY

1. Purpose

Douglas County Libraries (the "Library") recognizes its responsibility to manage public resources in a prudent and responsible manner. This includes identifying, assessing, and managing risks that may affect:

- The safety and well-being of employees and customers
- The protection of Library assets
- Financial stability
- The continuity of Library services

The Library considers significant disruption to services to be unacceptable and will take reasonable measures to mitigate such risks.

2. Scope

This policy applies to Library operations, facilities, and services. It establishes governance expectations for risk management across the organization.

3. Policy Statement

The Library shall maintain an ongoing, organization-wide risk management program designed to:

- Identify potential risks that may affect operations or services
- Assess the relative significance of identified risks
- Implement appropriate measures to reduce or manage risk
- Monitor risks and mitigation efforts over time

This policy establishes governance expectations only and does not prescribe operational procedures or methodologies. Detailed methodologies and procedures will be defined and maintained by the Executive Director.

4. Governance and Accountability

Board of Trustees:

- Reviews periodic reports on significant risks and mitigation efforts
- Ensures appropriate resources are available to support risk management activities
- Provides oversight only and does not participate in operational decision-making

Executive Director:

- Establishes and maintains the Library's risk management program
- Determines appropriate structure, roles, and processes
- Ensures periodic risk assessment and mitigation planning
- Provides annual reporting to the Board
- Exercises authority during emergencies to protect life safety and service continuity

5. Risk Management Program

The Library's risk management program shall include, at a minimum:

- Periodic risk assessment activities
- Identification and prioritization of significant risks
- Development and monitoring of mitigation strategies
- Coordination with safety, security, and continuity planning efforts
- Integration with insurance and loss prevention practices

Risk management activities shall be directed by the Executive Director and implemented through appropriate organizational processes.

6. Supporting Plans and Procedures

The Library will maintain supporting plans and procedures to implement this policy, including:

- Business continuity planning
- Disaster recovery planning
- Emergency response procedures
- Safety and security programs
- Incident reporting and claims processes

Detailed processes and tools will be maintained and updated as deemed necessary by the Executive Director.

7. Reporting

The Executive Director shall provide regular reports to the Board of Trustees regarding significant risks, mitigation efforts, and overall program effectiveness.

8. Policy Review

This policy shall be reviewed periodically and updated as necessary to ensure alignment with legal requirements and current or new technologies or procedures consistent with organizational needs.

Library Facilities and Spaces Policy

re: solicitations by for-profit businesses outside the library doors:

This is from an SLT meeting where we decided to “review and amend Petitioning Policy and Code of Conduct to ensure for-profit is handled appropriately.” I reviewed both and determined the Code of Conduct already covers this. For the policy, I added a line referring to the Code of Conduct, but that’s the only change.

Proposed changes:

Draft Petitions and Free Speech Activities

The Library recognizes and values free speech and is cognizant of our role as a respected, impartial provider of information and services intended for a broad audience. The Library is a welcoming community space. The Library endeavors to ensure that customers can enter and exit facilities safely, unimpeded, and without being unduly hindered. Members of the public may use designated exterior areas for free speech activity, subject to time, manner, and place limitations and subject to the Customer Code of Conduct. These time, manner, and place limitations and Customer Code of Conduct apply to everyone at all Library locations.

Access Policy: Customer Privacy

We amended the language in our Customer Privacy Waiver script, which staff read to (or show) new customers when they obtain a library card, or when someone asks about whether we allow people to pick up holds for others. This language is not a policy, but because we use it with customers regarding privacy I asked Linda to review it back in May. She did and thought we might also need to look at the Customer Privacy section of the Access Policy to be sure it’s aligned.

Customer Privacy Waiver (this is the script we read to our show customers when they obtain a library card):

Colorado Revised Statute 24-90-119, Privacy of User Records, ensures that all of your transactions with Douglas County Libraries are private and confidential. That means that Douglas County Libraries will not allow any person to gain access to your account, even to check out books being held.

If you wish to allow others limited access to your account information and transactions to check out items from our hold shelf on your behalf, you may add a Privacy Waiver to your account.

If you add the Privacy Waiver, others will have limited access to your account to check out materials related to any requests or holds; however, unless you share your physical library card number with a third party for this purpose, there will not be access to your account to view items checked out, fines, or other usage information. You may add or rescind this permission at any time.

If you would like a friend or family member to access your account for any reason other than picking up your items on hold, they will need to have your library card number available.

Proposed changes: Draft Access Policy: Customer Privacy

The Library is committed to customer privacy. The Library will comply with Colorado Revised Statutes 24-90-119 mandating the protection of customer privacy in the use of Library resources. In keeping with CRS 24-90-119, the Library maintains customer confidentiality with specific distinctions.

- The Library will use customer information for business operations and improvement.
- The Library will release customer identifying information only with the customer's written consent, or if such information is compelled by duly authorized legal subpoena from the court, upon court order, or where otherwise required by law. Customers may provide consent to allow another party limited access to account information and transactions in order to check out items from our hold shelf on that customer's behalf.
- The Library will release to parents account information for their minor children upon the presentation of the minor's library card or account number. Account information does not include any material except for records of use of the library card by the individual minor child.
- Any person in possession of a physical library card or a library card number is assumed to be the account holder or have the permission of the account holder to access the account.
- A customer who engages with the Board of Trustees at a public meeting is advised that their name and other identifying information provided may be associated with any public comment made by the customer, both during the meeting and in the official minutes of such meeting. A customer who has a topic placed on the Agenda is advised that their name and any identifying information or written materials prepared and presented for such purpose shall be associated with the Agenda in the official records of a public meeting of the Board of Trustees, and the minutes of any such meeting are public records. Customer usage information not related to any public comment or presentation made by the customer at a public meeting shall not be part of the public records of such meeting.
- The Library shall comply with the Colorado Open Records Act, Colorado Open Meetings Act, and any other law regarding Library operations to the greatest extent possible, while adhering to this Customer Privacy commitment. The Library may install surveillance cameras which may include images of customers

in general areas of the Library and has the authority to retain any recording for up to thirty days, for the limited purpose of safety and security. Such materials are not available to the public or to another agency without one or more of the methods to obtain express authorization required by the Privacy Policy.

MEMO

To: Douglas County Libraries Board of Trustees
Date: August 26, 2026
From: Bob Pasicznyuk
Subject: Access Policy Correction

Issue: Word Omission Correction - Access Policy.

Discussion: This is an administrative change – a simple correction to an omitted word - not a policy change or legislative mandated change.

Amended Policy:

Our Library's Commitment

The Library welcomes everyone.

We will offer our community exceptional care supporting their freedom and self-determination. We will inform customer choice impartially, without interference or improper influence.

Our commitment to welcoming requires that our decisions and practices are free from discrimination and individual content preferences, **not** based on the perceived literary or social value, or lack thereof, of any particular type of media, material, or programming. We will not discriminate on the basis of...

Policy without Amendment:

Our Library's Commitment

The Library welcomes everyone.

We will offer our community exceptional care supporting their freedom and self-determination. We will inform customer choice impartially, without interference or improper influence.

Our commitment to welcoming requires that our decisions and practices are free from discrimination and individual content preferences, based on the perceived literary or social value, or lack thereof, of any particular type of media, material, or programming. We will not discriminate on the basis of...

Recommendation: The Board move to accept this administrative correction, adding the word “not” to the Access Policy to clarify the intended content.

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 30, 2026

From: Bob Pasicznyuk

Subject: Annual Risk Report

Safety, Security, and Organizational Resilience

Douglas County Libraries continues to prioritize the safety and security of its people, facilities, systems, and services through a comprehensive approach to risk management and organizational resilience. During 2026, the Library strengthened physical safety and security through facility security enhancements, emergency preparedness planning and exercises, improved incident reporting and analysis, staff safety education, and partnerships with public safety and community organizations. Specific facility security enhancements include access control and security camera upgrades and standardization, bollard installation to restrict vehicle access, and emergency signage installation.

DCL also continued to mature its cybersecurity program through a layered risk-management strategy focused on protecting service continuity, reducing organizational exposure, supporting cyber insurance requirements, and strengthening system resilience. Key efforts included enhancing security controls, monitoring and response capabilities, staff cybersecurity awareness, governance practices, and vendor risk management.

Together, these initiatives improve the Library's ability to anticipate, prevent, respond to, and recover from both physical and cyber-related threats. Through ongoing investment in preparedness, continuous improvement, and cross-departmental collaboration, DCL remains committed to maintaining a safe and welcoming environment while safeguarding critical operations and maintaining public trust.

Political and Legislative Risks

The Colorado Legislature is perennially an active player in how all local governments operate, including library districts. The Library must remain vigilant in tracking legislation via its partners at the Special District Association and Colorado Association of Libraries (CAL).

CAL's stated priority for the 2027 session is legislation providing relief to eContent pricing.

Insurance

The Library leverages insurance to manage and mitigate organizational risk. These are the Library's current property and liability coverage limits and deductibles for 2026.

See schedule on next page.

Coverage	Per Occurrence Limit	Deductible
General Liability	\$2,000,000	\$50,000
Medical Payments – Premises	\$10,000	None
Employee Benefits Liability	Included in General Liability	\$50,000
Public Officials Liability	Included in General Liability	\$10,000
Employment Practices Liability	Included in General Liability	\$50,000
No Fault Water and Sewer backup	\$200,000*	\$7,500
Cyber	\$1,000,000	\$1,000
Fiduciary Liability	\$200,000	\$1,000
Excess Liability	\$8,000,000	None
Auto physical damage	Per schedule	\$1,000
Hired Auto physical damage	\$50,000	\$1,000
Property	Per schedule	\$50,000
Wind/hail	Per schedule	\$5,000
Equipment breakdown	Per schedule	\$1,000
Crime	\$500,000	\$2,500
Social Engineering Fraud	\$250,000	\$50,000
Pollution	\$1,000,000	\$1,000
Inland Marine (fine arts throughout district)	Per schedule	\$10,000
Terrorism & Sabotage - Physical Damage	\$100,000,000	\$10,000
Terrorism - Liability	\$10,000,000	\$10,000
Malicious attack	\$5,000,000	\$5,000
Volunteer Accident	\$25,000	None

* Limited to \$10,000 at any one premises

Schedule summary

\$149,947,329 Total property value per schedule
(buildings, contents, EDP and otherwise classified)

\$618,449 Total Inland Marine value per schedule

\$104,670 Total auto value per schedule

Investment Strategy

The Library has strategically invested its reserves, including funds allocated for the Sterling Ranch project, in a laddered portfolio of short- and mid-term investments. This approach reduces exposure to interest rate fluctuations, helps protect against market volatility, and provides greater stability than traditional deposit accounts. These investments are currently generating returns of just under 4%, allowing the Library to maximize earnings while preserving principal and maintaining sufficient liquidity to meet operational and capital needs. This strategy reflects the Library's commitment to sound financial management and responsible stewardship of public resources.

TAP AND FACILITIES FEE PURCHASE AGREEMENT
(DOUGLAS COUNTY LIBRARIES)

THIS TAP AND FACILITIES FEE PURCHASE AGREEMENT (this “**Agreement**”), is made and entered into as of this ____ day of _____, 2026 (the “**Effective Date**”), by and among DOUGLAS COUNTY LIBRARIES, a Title 24 library district and political subdivision of the State of Colorado (“**Builder**”), and the STERLING RANCH COMMUNITY AUTHORITY BOARD, a political subdivision and public corporation of the State of Colorado formed pursuant to Section 29-1-203.5, C.R.S. (the “**CAB**”). The CAB and Builder may sometimes be referred to collectively as the “**Parties**,” and either of them may sometimes hereafter be referred to as a “**Party**”.

RECITALS

WHEREAS, Sterling Ranch, LLC, a Delaware limited liability company (“**Developer**”) is developing a master planned community commonly known as “Sterling Ranch” (the “**Project**”), the residential portion of which is hereinafter sometimes referred to as the “**Community**”, located in Douglas County (the “**County**”), Colorado, in accordance with the Sterling Ranch Planned Development document as approved by the County and recorded in the real property records of the County (the “**County Records**”) on December 10, 2013 at Reception No. 2013095325 (as amended from time to time, the “**PD Plan**”).

WHEREAS, Builder is the owner of certain real property generally described as PT N1/2NE1/4 30-6-68 4.275 AM/L, County of Douglas, State of Colorado, in the Sterling Ranch planned development (the “**Lot**”), and included in the boundaries of Sterling Ranch Colorado Metropolitan District No. 2 (“**District 2**”).

WHEREAS, the Lot is located within the service area of the CAB, and the CAB is authorized and empowered by the CABEA (as hereinafter defined) to provide certain services to the owners, taxpayers, residents and users within its service area, including but not limited to, water, wastewater, and stormwater drainage services, and to provide for the design, installation, financing, operations, repair, replacement and maintenance of public improvements to serve the Project (collectively, “**Public Improvements**”).

WHEREAS, the CAB and Dominion Water & Sanitation District, a quasi-municipal corporation and political subdivision organized and existing under the constitution and laws of the State of Colorado (“**Dominion**” or “**DWSD**”), have executed (i) that certain Water and Wastewater Service Agreement for Sterling Ranch dated January 6, 2014 (as may be amended and/or supplemented from time to time, the “**Water and Wastewater Service Agreement**”), whereby Dominion agreed to provide wholesale water and wastewater services to the CAB, and (ii) that certain First Amended and Restated Water, Wastewater and Stormwater Operations Intergovernmental Agreement (for service to Sterling Ranch) dated October 17, 2017 (as may be amended, the “**Dominion IGA**”), which sets forth the terms under which Dominion will provide wholesale water, wastewater and stormwater services to the CAB.

WHEREAS, water and wastewater service to the Lot through the Taps (as hereinafter defined) will be subject to the CAB Rules & Regulations and the Dominion Rules & Regulations (both as hereinafter defined).

WHEREAS, pursuant to the CABEA, the CAB has the authority to impose rates, tolls and fees on real property within its service area, including, but not limited to, Development Fees (as defined in the CABEA).

WHEREAS, the Public Improvements will (i) benefit and enhance the value of the Community, including the Lot, and (ii) serve a public purpose and promote the health, safety, prosperity and general welfare of the Community and its present and future residents and landowners.

WHEREAS, Builder will purchase Taps from the CAB for the Lot and shall pay the associated Tap and Facilities Fees with respect to the Lot, and the CAB will collect such Tap and Facilities Fees for use in connection with completing the Public Improvements.

COVENANTS

In consideration of the recitals, the mutual promises and covenants contained in this Agreement, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the CAB and Builder agree as follows:

ARTICLE 1 DEFINITIONS

Section 1.1 Definitions. As used in this Agreement, the words defined below shall have the respective meanings set forth below:

- (a) Board: The duly constituted Board of Directors of the CAB.
- (b) CABEA: The First Amended and Restated Sterling Ranch Community Authority Board Establishment Agreement dated June 29, 2015, as the same may be amended from time to time.
- (c) Closing Date: as defined in the Purchase Contract.
- (d) Facilities Fees. With respect to Non-Residential property, including libraries, the fees imposed and collected by the CAB, in an amount adopted by the CAB from time to time, to be utilized by the CAB to pay for Public Improvements. Effective as of January 1, 2026, the CAB has adopted Facilities Fees in the amount per acre equal to four times the rate of the \$12,395.00 fee assessed per Single Family Detached residential lot (\$49,580.00 per acre). The amount of Facilities Fees is subject to change at the sole discretion of the CAB.
- (e) Person: Any individual, corporation, limited liability company, joint venture, estate, trust, partnership, association, or other legal entity.
- (f) Plans: The plans, documents, drawings, and specifications prepared by or for the CAB for the engineering, design, surveying, construction, installation, or acquisition of any of the Public Improvements, and including any addendum, change order, revision, or modification affecting the same, as approved by the CAB.
- (g) Rules and Regulations: Collectively, the duly adopted rules, regulations, rates, bylaws, policies and procedures of the CAB and Dominion governing connection and use of the Public Improvements as adopted or amended from time to time, including without limitation the CAB Rules & Regulations and the Dominion Rules & Regulations.
- (h) Tap(s): The right to connect for water and sanitary sewer service directly or indirectly to the Public Improvements.

(i) Tap and Facilities Fees: Collectively, (i) the Tap Fees, (ii) the Facilities Fees, and (iii) the DWSD water resource, irrigation water resource, and other connection-related fees identified in **Exhibit A**.

(j) Tap Fees: Per Lot fees imposed and collected by the CAB in exchange for connection to water and wastewater services and stormwater drainage for the Lot, in an amount adopted by the CAB from time to time based upon Lot Type as determined pursuant to periodic rate studies, to be utilized by the CAB to pay for Public Improvements. For clarity, Tap Fees may include fees for water, wastewater, and stormwater drainage service, including a stormwater drainage fee calculated by reference to impervious area, as applicable.

ARTICLE 2 PUBLIC IMPROVEMENTS

Section 2.1 Ownership, Operation and Use of Public Improvements. The payment of Tap and Facilities Fees shall not be deemed to give Builder any ownership right in any of the Public Improvements. The Public Improvements shall be available for the use of all Persons who use such improvements in accordance with the Rules and Regulations. The proceeds of Tap Fees may be used, in the discretion of the Board, for capital, debt service, construction and installation, operation, and maintenance of Public Improvements.

Section 2.2 Administration. The Board shall establish all rates, fees, tolls, penalties, and charges for service from on and off-site water, sewer, stormwater drainage and related Public Improvements. Service to the Builder shall be subject to all duly promulgated Rules and Regulations.

ARTICLE 3 TAP AND FACILITIES FEES

Section 3.1 Payment and Disbursement of Tap and Facilities Fees. Builder shall pay the Tap and Facilities Fees for the Lot in accordance with and subject to the provisions of this Article 3. Payment for the Tap and Facilities Fees shall be made via wire transfer to an account set up by or on behalf of the CAB for such purpose (the “CAB Account”).

Section 3.2 Amount Owed. Builder shall deliver or cause to be delivered to the CAB in cash via wire transfer the Tap and Facilities Fees, as detailed in **Exhibit A**, [within TBD days of the execution of this Agreement] [no later than October __, 2026].

Section 3.3 Future Tap and Facilities Fees. The amount calculated for the Tap and Facilities Fees in **Exhibit A** is based on the current building and landscaping plans, attached as **Exhibit B** and incorporated herein by reference. Additional Tap and Facilities Fees may be required if (i) there are any future landscaping and/or building plan changes that lead to an increase in water demand, wastewater services, stormwater services, or acreage; (ii) Builder proposes to construct additional facilities if such facilities lead to an increase in water demand, wastewater services, stormwater services, or acreage; or (iii) any other change or circumstance results in an increase in demand on the Public Improvements. In the event of such changes, Builder shall notify CAB, who will then recalculate the new Tap and Facilities Fee based upon the fees in effect at the time of the proposed changes, and in accordance with the Rules and Regulations. Under no circumstances shall Builder be eligible to receive a refund of any fees previously paid.

Section 3.4 Taps and Facilities Fees assigned to Lot. The Tap and Facilities Fees will be assigned by the CAB to the Lot. If Builder elects to sell the Lot, such Tap and Facilities Fees shall run with that Lot.

Section 3.5 Availability of Taps. The Tap and Facilities Fees represent payment for the right of the Builder to use and connect to the CAB's on and off-site water and sewer improvements and other Public Improvements, according to the CAB's specifications, and service shall be available upon payment in full of the (i) Tap and Facilities Fees set forth in **Exhibit A** and (ii) Additional Charges (as hereinafter defined) then due and payable under the Rules and Regulations.

Section 3.6 Payment Regardless of Use. Builder shall purchase the Taps and pay the corresponding Tap and Facilities Fees as provided in this Agreement regardless of whether Builder actually does utilize the Taps.

Section 3.7 Additional Charges. Builder acknowledges that certain additional charges (the "**Additional Charges**") may be imposed as set forth in the CAB or Dominion Rules & Regulations, including any future amendments. Additional Charges may include a monthly fire-suppression service fee if the Lot is connected to a fire-suppression line, together with other rates, fees, tolls, penalties, and charges authorized by the applicable CAB or Dominion Rules and Regulations. The applicable Rules and Regulations shall identify the entity imposing the charge, the payment recipient, and the date on which the charge becomes due. Except for applicable base water-service charges, mill levy assessments, and charges associated with covenant enforcement, Additional Charges shall not be imposed with respect to the Lot until Builder requests connection of the applicable Taps or service.

Section 3.8 Taps and Facilities Fees Non-Transferable and Non-Separable. Builder shall not transfer to any other Person any Taps or Facilities Fees except in connection with the sale or other transfer of the Lot to which such Tap and Facilities Fees are assigned.

Section 3.9 Dominion. Builder acknowledges that certain wholesale water and sewer services are provided by Dominion pursuant to the Dominion IGA and the Rules and Regulations. Builder shall take no action to jeopardize the continuing provision of service by Dominion to the CAB.

ARTICLE 4 REPRESENTATIONS, WARRANTIES, AND COVENANTS

Section 4.1 Builder Representations. Builder makes the following representations and warranties to the CAB.

(a) Builder has the full right, power, and authority to enter into, perform, and observe this Agreement.

(b) Neither the execution of this Agreement, the consummation of the transactions contemplated under it, nor the fulfillment of or the compliance with the terms and conditions of this Agreement by Builder will conflict with or result in a breach of any terms, conditions, or provisions of, or constitute a default under, or result in the imposition of any lien, charge, or encumbrance of any nature under any agreement, instrument, indenture, or any judgment, order, or decree to which Builder is a party.

Section 4.2 CAB Representations. The CAB makes the following representations and warranties to Builder:

(a) The Dominion IGA is in full force and effect, and there is no default or condition or event which, with the passage of time, giving of notice, or both, would become a default thereunder.

(b) The CAB is duly authorized under the Constitution and laws of the State of Colorado to execute this Agreement and perform its obligations under this Agreement, and all action on its part for the execution and delivery of this Agreement has been or will be duly and effectively taken, and this Agreement is binding on the CAB.

(c) Neither the execution of this Agreement, the consummation of the transactions contemplated under it, nor the fulfillment of or the compliance with the terms and conditions of this Agreement by the CAB will conflict with or result in a breach of any terms, conditions, or provisions of, or constitute a default under, or result in the imposition of any lien, charge, or encumbrance of any nature under any agreement, instruction, indenture, resolution, or any judgment, order, or decree of any court to which the CAB is a party or by which the CAB is bound.

Section 4.3 Instruments of Further Assurance. To the extent allowed by applicable law, the CAB and Builder covenant that they will do, execute, acknowledge, and deliver or cause to be done, executed, acknowledged, and delivered, such acts, instruments, and transfers as may reasonably be required for the performance of their obligations under this Agreement.

ARTICLE 5 DEFAULT, REMEDIES, AND ENFORCEMENT

Section 5.1 Events of Default. The occurrence of any one or more of the following events or the existence of any one or more of the following conditions shall constitute an “**Event of Default**” by Builder under this Agreement:

(a) Failure by Builder to pay any Tap and Facilities Fees or Additional Charges imposed by the CAB when the same shall become due and payable as provided in this Agreement or, as applicable, under the CAB Rules & Regulations; provided that such failure continues for a period of 10 days after the delivery of written notice thereof from the CAB to Builder (“**Notice of Failure to Pay**”). At the CAB’s option, the total amount of the defaulted and future payments, including under Section 3.2 hereof, shall become accelerated and due and payable without presentment, demand, or other requirements of any kind, all of which are expressly waived by Builder;

(b) Failure by Builder to perform or observe any other of the covenants, agreements, or conditions on the part of Builder in this Agreement; provided that such failure continues for a period of 10 days after the delivery of written notice thereof from the CAB to Builder;

(c) Any action or inaction that, in the opinion of the CAB, jeopardizes the continued provision of services to the CAB by Dominion under the Dominion IGA; provided that such failure continues for a period of 10 days after the delivery of written notice thereof from the CAB to Builder.

Section 5.2 Remedies on the Occurrence of an Event of Default.

(a) In the event Builder fails to pay the Tap and Facilities Fees and/or Additional Charges imposed by the CAB, or any other default under this Agreement, the CAB shall have the following rights and remedies:

(i) To shut off or discontinue water and/or sewer service in accordance with law to the Lot unless Tap Fees, Facilities Fees, and/or Additional Charges have been paid by Builder;

(ii) To protect and enforce its rights under this Agreement and any provision of law by such suit, action, or special proceedings as the CAB shall deem appropriate, including, without limitation, any proceedings for the specific performance of any covenant or agreement contained in this Agreement or the enforcement of any other appropriate legal or equitable remedy, or for the recovery of actual damages (excluding consequential, punitive damages or similar damages) caused by breach of this Agreement, including reasonable attorneys' fees and all other costs and expenses incurred in enforcing this Agreement;

(iii) To enforce collection of any amounts owed under this Agreement as provided in C.R.S. §32-1-1001(1)(j)(I), as may be amended from time to time; and,

(iv) To take or cause to be taken such other actions as the CAB deems necessary.

Section 5.3 Occurrence of Event of Default Results in Forfeiture. In addition to the aforementioned remedies, upon the occurrence of an Event of Default by Builder, and at the election of the CAB, in its sole discretion, Builder shall forfeit all rights to receive any Taps and any credit for payment of the Facilities Fee for the Lot owned by Builder for which Tap and Facilities Fees have not been paid by Builder to the CAB. If an Event of Default by Builder is also a violation of the Rules and Regulations, then the CAB shall have all remedies available to it under the Rules and Regulations, in addition to the remedies provided under this Agreement. The CAB is relying on the payment of Additional Charges as required by this Agreement and as set forth in the Rules and Regulations, and the obligation of Builder to pay the Additional Charges is secured by a perpetual lien on the Lot owned by Builder, but not subject to foreclosure, until paid.

Section 5.4 Default by CAB. In the event of any default by the CAB hereunder, Builder shall be entitled to all remedies available at law or in equity (excluding consequential and punitive, or similar damages); provided however, that Builder shall in all circumstances remain obligated to pay Tap and Facilities Fees and Additional Charges for all Lots it acquires, and such obligation of Builder shall not be subject to setoff or counterclaim. In addition, the exercise of any remedy by Builder hereunder shall not act to terminate the provision of water and sewer service to a connected Tap for which a Tap Fee, Facilities Fee, and all Additional Charges have been paid by Builder.

Section 5.5 Delay or Omission No Waiver. No delay or omission of the CAB or Builder to exercise any right or remedy under this Agreement shall exhaust or impair any such right or remedy or shall be construed to be a waiver of any right or remedy under this Agreement.

Section 5.6 No Waiver of One Default to Affect Another; All Remedies Cumulative. No waiver of any Event of Default under this Agreement by Builder or default by the CAB shall extend to or affect any subsequent or any other then-existing default or Event of Default or shall impair any rights or remedies available for such other default or Event of Default. All rights and remedies of the CAB and Builder described herein may be exercised following notice and an opportunity to cure such default within 10 days, shall be cumulative, may be exercised separately, concurrently, or repeatedly, and the exercise of any such right or remedy shall not affect or impair the exercise of any other right or remedy.

Section 5.7 Moratorium. No moratorium shall impair the rights of the CAB or Builder hereunder.

Section 5.8 Unconditional Obligation. The obligations of Builder to pay any and all Additional Charges for such Lots as provided herein shall be absolute and unconditional and shall be binding and enforceable in all circumstances and shall not be subject to setoff or counterclaim.

ARTICLE 6 MISCELLANEOUS PROVISIONS

Section 6.1 Interpretation. In this Agreement, unless the context otherwise requires:

- (a) All definitions, terms, and words shall include both the singular and plural.
- (b) Words of the masculine gender include correlative words of the feminine and neuter genders.
- (c) The captions or headings of this Agreement are for convenience only and in no way define, limit, or describe the scope or intent of any provision, article, or section of this Agreement.
- (d) In the event of a conflict, the most restrictive on the Builder of the Rules and Regulations or this Agreement controls.

Section 6.2 Time of the Essence. Time is of the essence under this Agreement. If the last day permitted or the date otherwise determined for the performance of any act required or permitted under this Agreement falls on a Saturday, Sunday or legal holiday, the time for performance shall be the next succeeding weekday that is not a Saturday, Sunday or holiday, unless otherwise expressly stated.

Section 6.3 Parties Interested Herein. Nothing expressed or implied in this Agreement is intended or shall be construed to confer upon, or to give to, any Person other than the CAB or Builder any right, remedy, or claim under or by reason of this Agreement or any covenants, terms, conditions or provisions hereof, and all the covenants, terms, conditions and provisions in this Agreement by and on behalf of the CAB and Builder shall be for the sole and exclusive benefit of the CAB and Builder. The covenants, terms, conditions and provisions contained herein and all amendments of this Agreement, if any, shall inure to and be binding upon the heirs, personal representatives, successors and permitted assigns of the Parties.

Section 6.4 Assignment. Except as provided in Section 3.8, Builder shall not assign its rights or obligations (in whole or in part) under this Agreement without the prior written consent of the CAB. The assignee must specifically agree in writing to assume the obligations of Builder hereunder. Any assignment without such consent shall be void. Except for an assignment by the CAB to another municipal or quasi-municipal corporation or political subdivision of the State of Colorado, the CAB shall not assign its rights or obligations (in whole or in part) under this Agreement without the prior written consent of Builder.

Section 6.5 Notices. Except as otherwise provided herein, any notice or other communication required to be given hereunder will be in writing and delivered personally, sent by United States certified mail, return receipt requested, by reputable overnight courier, by facsimile or e-mail, in each case addressed to the party to receive such notice at the following addresses:

If to CAB:	Sterling Ranch Community Authority Board 9350 Roxborough Park Road Sterling Ranch, CO 80125 Attn: General Manager Telephone: (720) 661-9694 Email: gary.debus@sterlingranchcab.com
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With a copy to: Sterling Ranch Community Authority
 Board 9350 Roxborough Park Road
 Sterling Ranch, CO 80125
 Attn: General Counsel
 Telephone: (720) 661-9694
 Email: legalnotices@sterlingranchcab.com

If to Builder: Douglas County Libraries
 100 S. Wilcox Street
 Castle Rock, CO 80104
 Attn: Director of Finance
 Phone: 303-791-7323
 Email: finance@dclibraries.org

With a required copy to: Douglas County Libraries
 100 S. Wilcox Street
 Castle Rock, CO 80104
 Attn: Director of Finance
 Phone: 303-791-7323
 Email: finance@dclibraries.org

Any notice delivered personally will be deemed given on receipt; any notice delivered by certified mail will be deemed given three business days after the deposit thereof in the United States mail with adequate postage prepaid; any notice delivered by overnight courier will be deemed given one business day after the same has been deposited with the courier, with delivery charges prepaid; and any notice given by e-mail will be deemed given on the date and time of the computer generated electronic confirmation. Any notice sent by e-mail shall also be simultaneously send via one of the other acceptable methods above.

Section 6.6 Severability. If any covenant, term, condition, or provision under this Agreement shall, for any reason, be held to be invalid or unenforceable, the invalidity or unenforceability of such covenant, term, condition, or provision shall not affect any other provision contained in this Agreement, the intention being that such provisions are severable.

Section 6.7 Venue. Exclusive venue for all actions arising from this Agreement shall be in the District Court in and for Douglas County, Colorado. Builder expressly waives the right to bring any action in or to remove any action to any other jurisdiction, whether state or federal.

Section 6.8 Amendment. This Agreement may be amended from time to time by agreement between the CAB and Builder; provided, however that no amendment, modification, or alteration of the terms or provisions of this Agreement shall be binding upon the CAB or Builder unless the same is in writing and duly executed by the CAB and Builder.

Section 6.9 Entirety. This Agreement constitutes the entire contract between the CAB and Builder concerning the subject matter herein, and all prior negotiations, representations, contracts, understandings, or agreements between the Parties pertaining to such matters are merged into and superseded by this Agreement.

Section 6.10 Governing Law. The substantive laws of the State of Colorado (and not its conflicts of law principles) govern all matters arising out of, or relating to, this Agreement and all of the

transactions it contemplates, including without limitation its validity, interpretation, construction, performance and enforcement.

Section 6.11 Attorneys' Fees. Should any action be brought in connection with this Agreement, including, without limitation, actions based on contract, tort or statute, the substantially prevailing party in such action shall be awarded all costs and expenses incurred in connection with such action, including reasonable attorneys' fees, plus interest at a rate of 18% per annum on all said costs from the date of expenditure. The provisions of this Section shall survive the expiration or termination of this Agreement.

Section 6.12 No Waiver of Governmental Immunity. By entering this Agreement, the Parties do not intend to waive, and no provision of this Agreement shall be interpreted as waiving, the Parties' rights pursuant to the Colorado Governmental Immunity Act, § 24-10-101 et seq., C.R.S. or those of any director, officer, employee or agent of the Parties.

Section 6.13 Counterparts, Authority and Electronic Signatures. Each party may sign this Agreement in counterparts, with a fully executed copy being considered an original. Each person signing this Agreement in a representative capacity expressly represents that the signatory has the subject Party's authority to sign and that the subject Party will be bound by the signatory's execution of this Agreement. This Agreement may be signed by electronic means, or an executed copy transmitted by electronic means, and be considered properly executed and binding on the Parties.

[signatures appear on following pages]

CAB:

THE STERLING RANCH COMMUNITY AUTHORITY BOARD,

a political subdivision and public corporation of the State of Colorado formed pursuant to Section 29-1-203.5, C.R.S.

By: _____
Harold R. Smethills, Jr., President

[signatures continued on following pages]

BUILDER:

DOUGLAS COUNTY LIBRARIES,

A Title 24 library district and political subdivision
of the State of Colorado

By : _____
Terry R. Nolan, Board President

[signatures continued on following pages]

ACKNOWLEDGED:

DOMINION WATER AND SANITATION DISTRICT,

a quasi-municipal corporation and political subdivision organized and existing
under the constitution and laws of the State of Colorado

By: _____

Name: John Ostermiller

Title: President

EXHIBIT A
to Tap and Facilities Fee Purchase Agreement

Tap and Facilities Fees Schedule

Description	Quantity	Unit of Measure	Total Fees			Fees	
			CAB	DWSD	Total	CAB	DWSD
Water Resource Fee (Per SFE)	1.49	SFE		\$26,001	\$26,001		\$17,450
Water Resource Fee - Irrigation (Per Acre Foot)	1.41*	Acre Feet		\$75,238	\$75,238		\$53,360
Water Infrastructure Tap Fee (2" Tap)	1	Taps	\$14,855	\$168,090	\$182,945	\$14,855	\$168,090
Sewer Tap (2" Tap)	1	Taps	\$7,795	\$75,440	\$83,235	\$7,795	\$75,440
Storm Drainage (based on square footage of Impervious Area)	75,036.46	Impervious SF	\$241,617		\$241,617	\$3.22	
Facilities Fee (Nonresidential per Acre)	2.97**	Acres	\$147,253		\$147,253	\$49,580	
Total Fees			\$411,520	\$344,769	\$756,289		

*Total of 1.41 Acre Feet based on irrigation tap fee calculated based on CAB's will serve letter.

**Total of 2.97 acres is based on the calculation in Dominion's will serve letter. The remaining acreage described in the legal description of the Lot is not included in the Facilities Fee calculation.

EXHIBIT B
to Tap and Facilities Fee Purchase Agreement
Building and Landscaping Plans

NON-EXCLUSIVE UTILITY EASEMENT

THIS GRANT OF EASEMENT (the “**Easement**”) is made this __ day of _____, 20 __, between Douglas County Libraries, whose address is 100 South Wilcox Street, Castle Rock, CO 80104 (hereinafter “**Grantor**”), and THE STERLING RANCH COMMUNITY AUTHORITY BOARD, a public corporation and political subdivision of the State of Colorado, whose address is 9350 Roxborough Park Road, Littleton, CO 80125 (hereinafter “**Grantee**”). Grantor and Grantee, and their respective successors and assigns, may be referred to collectively herein as the “Parties” and singularly as a “Party.”

RECITALS

A. Grantor is the owner and developer of certain tracts of land identified more specifically herein and which are within the planned development known as **Sterling Ranch**; and

B. Grantee was created by the Second Amended and Restated Sterling Ranch Community Authority Board Establishment Agreement, dated March 18, 2020, and with an original effective date of January 6, 2014, as may be amended (the “**CABEA**”), by and among the Sterling Ranch Colorado Metropolitan District Nos. 1-7 to furnish, operate, manage and coordinate the provision of public improvements, facilities, and services for the planned development known as Sterling Ranch; and

C. As part of the development, certain CAB owned utilities including water, sanitary sewer and storm sewer improvements including, but not limited to, pipes, lines, valves, manholes, inlets, culverts, hydraulic structures, riprap, detention basins, forebays, micro-pools, and water quality facilities (collectively the “**Public Improvements**”) are required to be installed as part of development planning and which require long term maintenance and operations; and,

D. The Public Improvements are improvements which Grantee is authorized to furnish, operate, and maintain pursuant to the CABEA; and

E. Grantee does hereby acknowledge that the easement granted by this Agreement is not exclusive and other utility providers may be granted adjacent or overlapping easements provided that such use shall not interfere with Grantee’s rights hereunder.

F. Grantee acknowledges that it shall be responsible for owning, maintaining, and repairing all Public Improvements installed by or accepted by Grantee within the Easement Area.

WITNESSETH:

GRANTOR, for and in consideration of TEN DOLLARS AND 00/100 (\$10.00) and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and by these presents does hereby grant and convey to Grantee, its successors and assigns, a perpetual nonexclusive easement in, on, over, under, through and across those portions of Grantor’s real property, as more particularly described in **Exhibit A**, attached hereto and incorporated herein (each an “**Easement Area**”), for the purpose of accessing, constructing, maintaining, and repairing the Public Improvements within the Easement Area. This Easement shall be subject to the following terms and conditions:

1. Use by Grantee. Subject to the terms hereof, Grantee shall have the full right and authority to enter upon the Easement Area, modify slope grades within the Easement Area and install the Public Improvements above and below the ground surface within the Easement Area, and to perform all other work as may be necessary from time to time to accommodate, use, operate, maintain and repair the Public

Improvements consistent with the requirements of Douglas County, or other public body with jurisdiction, oversight, or permitting approval of the Public Improvements, at Grantee's sole discretion.

2. Use by Grantor and Restrictions. Grantor retains the right to use and enjoy the Easement Area, insofar as such use and occupancy is consistent with and does not impair any grant herein contained. This includes the right to grant additional non-exclusive easements encompassing the Easement Area. Grantor shall be prohibited from constructing any structures or improvements within the Easement Area that would interfere with the operation, use, or maintenance of the Public Improvements, unless specific written permission is obtained from the Grantee and done pursuant to plans or designs approved by Douglas County. Grantor shall be prohibited from excavating, back-filling, or otherwise altering, in any manner, the Public Improvements within the Easement Area, unless specific written permission is obtained from Grantee and done pursuant to plans or designs approved by Douglas County. Grantor shall take no action which would impair the earth cover over, or the lateral or subjacent support for any Public Improvements or related structures within the Easement Area, unless specific written permission is obtained from the Grantee and done pursuant to plans or designs approved by Douglas County.

3. No Additional Uses. Grantee, its employees, authorized agents and contractors use of the Easement Area shall be for the sole and exclusive purpose of performing construction, maintenance and/or repair work on the Public Improvements, and this grant of easement shall not be construed as a fee dedication of the Easement Area or a grant of uses beyond those contemplated herein, and the Parties shall take whatever steps may be necessary to avoid any such additional uses.

4. Notice. Grantee shall notify Grantor orally or in writing a minimum of twenty-four (24) hours prior to entering the Easement Area to perform any construction, maintenance and/or repair activities, unless the Grantee determines that an emergency danger to public health or safety does not allow such notice in which case Grantee will inform Grantor as soon as reasonably practical.

5. Removal of Vegetation. Grantee, its authorized agents or contractors, shall have the right to remove shrubs, woody plants and nursery stock (singularly and collectively, the "**Vegetation**") from within the Easement Area that may interfere with the Public Improvements; provided however, Grantee shall use reasonable efforts to protect Vegetation identified by Grantor as to be protected if possible (and inform Grantor if not possible).

6. Repair and Restoration. Upon the completion of any work authorized by this Easement, Grantee shall restore the surface of the Easement Area, and any areas disturbed by Grantee, as nearly as reasonably possible to its original grade and condition, except as necessarily modified to accommodate the Public Improvements, which shall include contouring and stabilizing the surface of the ground, and repairing any depressions, wheel tracks, ruts or other marks left in the ground surface by truck or track-mounted equipment. Grantee shall revegetate any disturbed areas with the seed mixture currently approved by the Douglas County Department of Public Works Engineering.

7. Removal of Equipment. Upon completion of any work authorized by this Easement, Grantee shall promptly remove all materials, debris and equipment utilized to perform the work from the Easement Area, including any construction equipment and materials staged and/or stored within the Easement Area, if any.

8. Fencing. If any permanent fencing located within and/or adjacent to the Easement Area is impacted by Grantee's activities, Grantee shall reset or replace the disturbed permanent fencing with like kind materials at its original location once construction activities are completed, or at a location to be mutually determined between the Parties if it is not possible to reset or replace the disturbed fencing at its original location.

9. Mechanic's and Materialmen's Liens. Grantee covenants and agrees not to suffer or permit any lien of mechanics or materialmen or others to be placed against the Easement Area or on Grantor's property with respect to work or services claimed to have been performed for, or materials claimed to have been furnished to, Grantee or its agents pursuant to this Easement.

10. Compliance with Laws. Grantee shall cause all activities and work on the Easement Area to be performed in compliance with all applicable laws, rules, regulations, orders and other governmental requirements, including all stormwater management laws and regulations. Grantee acknowledges and agrees that it shall be responsible for obtaining and maintaining all necessary federal, state and local permits relating to water quality, erosion, drainage, sediment control, grading and stormwater discharge for the performance of maintenance and/or repair work.

11. Release. Grantee, for itself and those claiming through Grantee, hereby releases Grantor, its beneficiaries, and its respective officers, directors, partners, employees, agents, mortgagees, licensees, contractors, guests, and invitees from any and all liability, loss, claims, demands, damages, penalties, fines, interest, costs, and expenses for damage that may arise from the Use of the Easement Area by Grantee and its agents.

13. Endangered Species Act. The Easement Area may contain habitat for listed "threatened" or "endangered" species under the Endangered Species Act (ESA). Grantee shall be responsible for determining the presence of such habitat and taking measures to comply with the ESA and all other applicable federal laws.

14. Environmental. Grantee shall not cause or permit any Hazardous Material to be brought upon, kept or used in or about the Easement Area by Grantee, its agents, employees or contractors, except those customarily used in typical amounts regarding the equipment or operations required to construct, maintain and repair the Public Improvements. Without limiting the foregoing, if the presence of any Hazardous Material on the Easement Area caused or permitted by Grantee results in any contamination of the Easement Area, Grantee shall promptly take all actions, at no expense to Grantor, as are necessary to return the Easement Area to the condition existing prior to the introduction of any such Hazardous Material to the Easement Area, provided that Grantor's approval of such actions shall first be obtained, which approval shall not be unreasonably withheld so long as such actions would not potentially have any material adverse effect on the Easement Area. As used in this Easement, the term "**Hazardous Material**" means any hazardous or toxic substance, material or waste that is or becomes regulated by any local governmental authority, the State of Colorado or the United States.

15. Warranties and Disclaimers. Grantor makes no warranties or representations with respect to the Easement Area, including, without limitation, the condition and state of repair of the Easement Area, the suitability of the Easement Area for Grantee's intended use, or with respect to any rights which other parties may have, or claim to have, to enter upon the Easement Area by reason of access easements granted by Grantor or otherwise.

16. General Provision.

a. Controlling Law. The interpretation and performance of this Easement shall be governed by the laws of the State of Colorado.

b. Severability. In the event any of the provisions of this Easement are held to be unenforceable or invalid by any court of competent jurisdiction, the validity of the remaining provisions shall not be affected. Should either Party fail to enforce a specific term of this Easement, it shall not be a waiver of

a subsequent right of enforcement, nor shall it be deemed a modification or alteration of the terms and conditions contained herein.

c. Entire Agreement. This Easement sets forth the entire agreement of the Parties with respect to the Easement and supersedes all prior discussions, negotiations, understandings or agreements relating to the Easement, all of which are merged herein.

d. No Third-Party Beneficiaries. This Easement is entered into by and between Grantor and Grantee, is solely for the benefit of Grantor and Grantee and their respective successors and assigns for the purposes set forth herein and does not create rights or responsibilities in any third parties beyond Grantor and Grantee.

e. Amendment. Any amendment shall be in writing and signed by both Parties.

f. No Waiver of Governmental Immunity. Both of the Parties, their directors, officials, officers, agents and employees, are relying on, and do not waive nor intend to waive by any provision of this Easement, the immunities and protections provided by the Colorado Governmental Immunity Act, §§ 24-10-101 to 120, C.R.S., as amended, including monetary limitations or any other rights, as amended.

g. Appropriations. Any financial obligations of Grantee shall extend only to monies duly and lawfully appropriated and budgeted by Grantee and encumbered for the purpose of this Easement, pursuant to § 29-1-110, C.R.S., as amended.

h. Venue. Venue for any action hereunder shall be in the district court of the County of Douglas, State of Colorado.

i. Recitals. All recitals are hereby incorporated into the Easement.

j. Counterparts. This Easement may be executed in two (2) or more counterparts, each of which shall be deemed an original, all of which together shall constitute one and the same instrument.

k. Successors and Assigns. This Easement shall extend to and be binding upon the heirs, successors and assigns of the Parties hereto and shall run with the land.

**[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]
[SIGNATURES TO FOLLOW]**

IN WITNESS WHEREOF, the Parties have executed this Easement on the date set forth above.

GRANTOR:

Douglas County Libraries,
100 South Wilcox Street, Castle Rock, CO 80104

By: _____

Its: Terry R. Nolan, Board President

STATE OF COLORADO)
)ss.
COUNTY OF DOUGLAS)

The foregoing instrument was acknowledged before me this ____ day of _____, 2026_, by Terry R. Nolan as Board President of Douglas County Libraries, a Colorado Library District.

Witness my hand and official seal

S E A L

Notary Public

My commission expires:_____

GRANTEE:

STERLING RANCH COMMUNITY AUTHORITY BOARD

By: _____
Its: General Manager, Gary Debus

STATE OF COLORADO)
)ss.
COUNTY OF DOUGLAS)

The foregoing instrument was acknowledged before me this _____ day of _____, by Gary Debus as General Manager of the Sterling Ranch Community Authority Board.

S E A L

Witness my hand and official seal

Notary Public

My commission expires: _____

EXHIBIT A & EXHIBIT B

EASEMENT AREA

[see attached]

EXHIBIT A

67 of 83

A PARCEL OF LAND, SITUATE IN THE NORTHEAST QUARTER (NE1/4) OF SECTION THIRTY (30), TOWNSHIP SIX SOUTH (T.6S.) , RANGE SIXTY-EIGHT WEST (R.68W.) OF THE 6TH PRINCIPAL MERIDIAN, COUNTY OF DOUGLAS, STATE OF COLORADO, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTH QUARTER CORNER OF SAID SECTION 30 AND ASSUMING THE NORTH LINE OF SAID NE1/4 AS BEARING SOUTH 89°56'24" EAST, BEING A GRID BEARING OF THE COLORADO STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, NORTH AMERICAN DATUM 1983/2011, A DISTANCE OF 2632.95 FEET BEING MONUMENTED BY A #6 REBAR WITH A 2.5" ALUMINUM CAP STAMPED LS 28286 AT THE NORTH QUARTER CORNER AND THE NORTHEAST CORNER OF SAID SECTION 30 AND WITH ALL OTHER BEARINGS CONTAINED HEREIN RELATIVE THERETO;

THENCE SOUTH 89°56'24" EAST, ALONG SAID NORTH LINE, A DISTANCE OF 739.71 FEET;
THENCE SOUTH 00°03'37" WEST A DISTANCE OF 39.84 FEET TO THE NORTHERLY RIGHT-OF-WAY (ROW) OF PINEY RIVER AVENUE, AS SHOWN ON THE RECORDED PLAT OF STERLING RANCH FILING NO. 1 IN THE RECORDS OF THE DOUGLAS COUNTY, COLORADO CLERK AND REORDER'S OFFICE AT RECEPTION NUMBER 2015080636;

THENCE SOUTH 65°25'20" EAST ALONG SAID ROW A DISTANCE OF 353.24 FEET TO THE **POINT OF BEGINNING**;

THENCE NORTH 24°34'40" EAST A DISTANCE OF 40.85 FEET;
THENCE SOUTH 65°24'16" EAST A DISTANCE OF 25.00 FEET;
THENCE SOUTH 24°34'40" WEST A DISTANCE OF 40.84 FEET;
THENCE NORTH 65°25'20" WEST A DISTANCE OF 25.00 FEET TO THE **POINT OF BEGINNING**;

CONTAINING AN AREA OF 1,021 SQUARE FEET OR 0.0234 ACRES, MORE OR LESS.

NOTICE

According to Colorado law you must commence any legal action based upon any defect in this survey within three years after you first discover such defect. In no event may any action based upon any defect in this survey be commenced more than ten years from the date of the certification shown hereon. (13-80-105 C.R.S. 2012)

SURVEYOR'S STATEMENT

I, Steven Parks, a Colorado Licensed Professional Land Surveyor do hereby state this Parcel Description was prepared from under my personal supervision and checking, and that it is true and correct to the best of my knowledge and belief.



Steven Parks - on behalf of Majestic Surveying, LLC
Colorado Licensed Professional Land Surveyor #38348

LEGAL DESCRIPTION
DATE: JUNE 2026
JOB NO. 1296.0001.00
SHEET 1 OF 2

TST TST, INC. CONSULTING ENGINEERS

748 Whalers Way, Suite 200
Fort Collins, Colorado
Phone: 970.226.0557

NOTICE

According to Colorado law you must commence any legal action based upon any defect in this survey within three years after you first discover such defect. In no event may any action based upon any defect in this survey be commenced more than ten years from the date of the certification shown hereon. (13-80-105 C.R.S. 2012)

EXHIBIT A

68 of 83

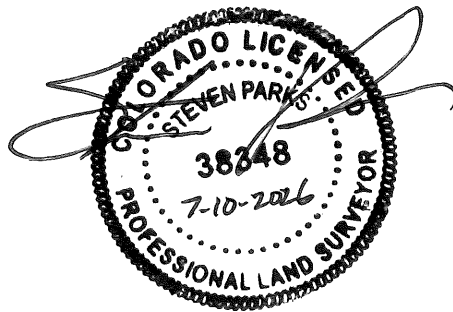
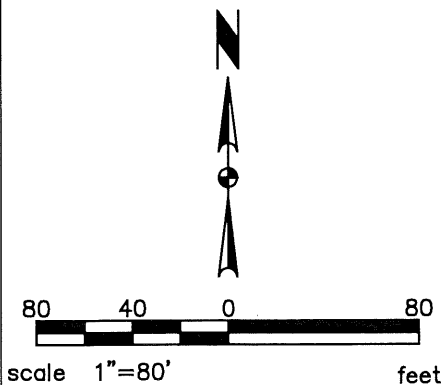
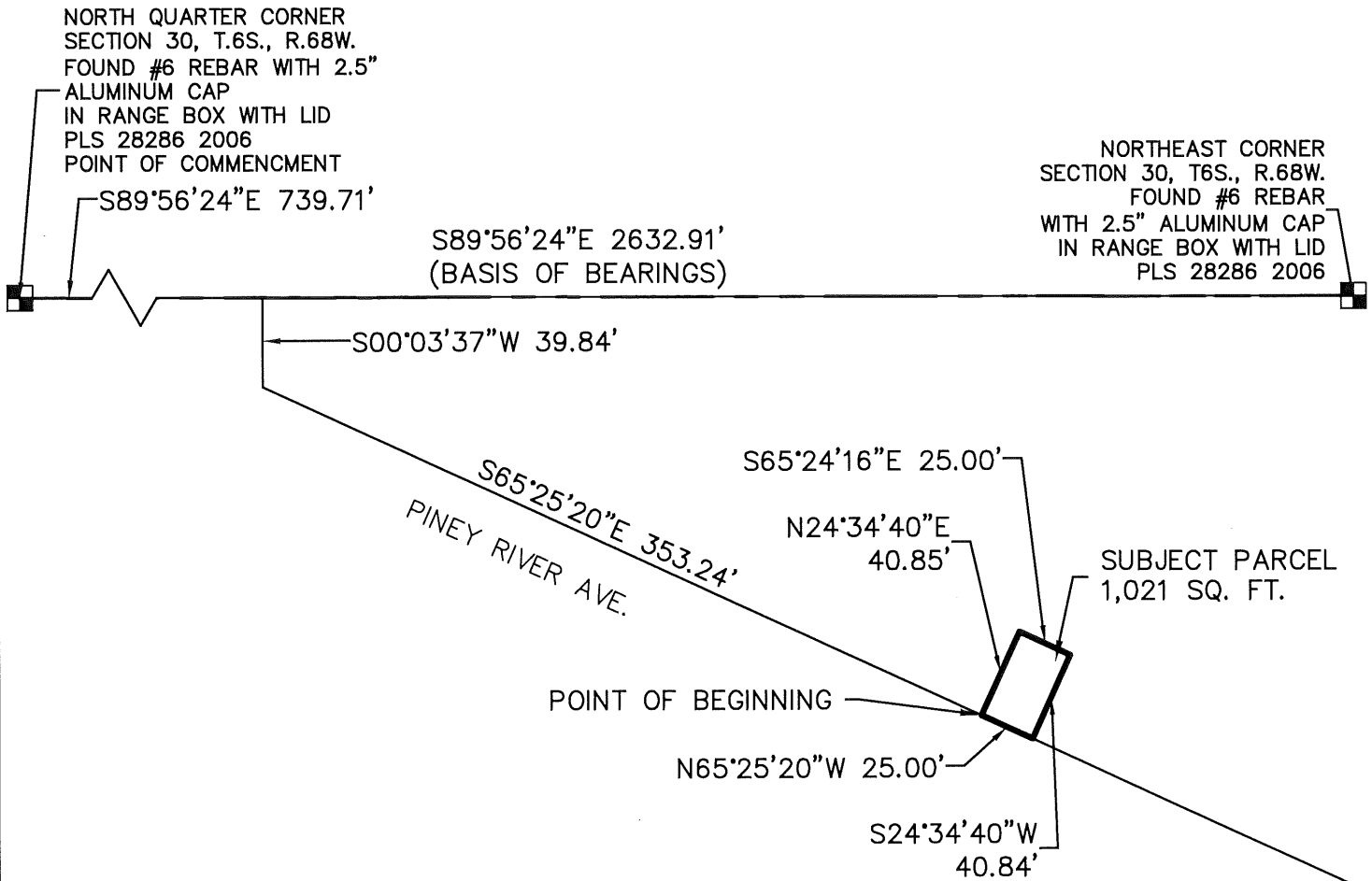


ILLUSTRATION
DATE: JUNE 2026
JOB NO. 1296.0001.00
SHEET 2 OF 2

TST TST, INC. CONSULTING ENGINEERS

748 Whalers Way, Suite 200
Fort Collins, Colorado
Phone: 970.226.0557

EXHIBIT B

69 of 83

A PARCEL OF LAND, SITUATE IN THE NORTHEAST QUARTER (NE1/4) OF SECTION THIRTY (30), TOWNSHIP SIX SOUTH (T.6S.) , RANGE SIXTY-EIGHT WEST (R.68W.) OF THE 6TH PRINCIPAL MERIDIAN, COUNTY OF DOUGLAS, STATE OF COLORADO, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTH QUARTER CORNER OF SAID SECTION 30 AND ASSUMING THE NORTH LINE OF SAID NE1/4 AS BEARING SOUTH 89°56'24" EAST, BEING A GRID BEARING OF THE COLORADO STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, NORTH AMERICAN DATUM 1983/2011, A DISTANCE OF 2632.95 FEET BEING MONUMENTED BY A #6 REBAR WITH A 2.5" ALUMINUM CAP STAMPED LS 28286 AT THE NORTH QUARTER CORNER AND THE NORTHEAST CORNER OF SAID SECTION 30 AND WITH ALL OTHER BEARINGS CONTAINED HEREIN RELATIVE THERETO;

THENCE SOUTH 89°56'24" EAST, ALONG SAID NORTH LINE, A DISTANCE OF 739.71 FEET;
THENCE SOUTH 00°03'37" WEST A DISTANCE OF 39.84 FEET TO THE NORTHERLY RIGHT-OF-WAY (ROW) OF PINEY RIVER AVENUE, AS SHOWN ON THE RECORDED PLAT OF STERLING RANCH FILING NO. 1 IN THE RECORDS OF THE DOUGLAS COUNTY, COLORADO CLERK AND REORDER'S OFFICE AT RECEPTION NUMBER 2015080636;

THENCE SOUTH 65°25'20" EAST, ALONG SAID ROW, A DISTANCE OF 543.05 FEET TO A POINT OF CURVATURE"

THENCE ALONG THE ARC OF A CURVE CONCAVE TO THE NORTHEAST A DISTANCE OF 18.90, HAVING A RADIUS OF 469.00 FEET, A DELTA OF 02°18'34" AND IS SUBTENDED BY A CHORD THAT BEARS SOUTH 66°34'37" EAST A DISTANCE OF 18.90 FEET AND TO THE **POINT OF BEGINNING**;

THENCE NORTH 24°34'40" EAST, ALONG A LINE NON-TANGENT TO AFORESAID COURSE, A DISTANCE OF 134.64 FEET;

THENCE SOUTH 65°25'20" EAST A DISTANCE OF 20.00 FEET;

THENCE SOUTH 24°34'40" WEST A DISTANCE OF 133.40 FEET TO SAID NORTHERLY ROW AND TO THE BEGINNING POINT OF A CURVE, NON-TANGENT TO AFORESAID COURSE;

THENCE ALONG THE ARC OF A CURVE CONCAVE TO THE NORTHEAST A DISTANCE OF 20.04, HAVING A RADIUS OF 469.00 FEET, A DELTA OF 02°26'53" AND IS SUBTENDED BY A CHORD THAT BEARS NORTH 68°57'21" WEST A DISTANCE OF 20.04 FEET TO THE **POINT OF BEGINNING**;

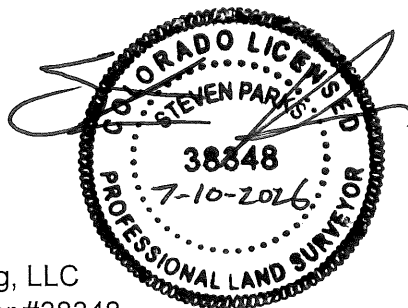
CONTAINING AN AREA OF 2,682 SQUARE FEET OR 0.062 ACRES, MORE OR LESS.

NOTICE

According to Colorado law you must commence any legal action based upon any defect in this survey within three years after you first discover such defect. In no event may any action based upon any defect in this survey be commenced more than ten years from the date of the certification shown hereon. (13-80-105 C.R.S. 2012)

SURVEYOR'S STATEMENT

I, Steven Parks, a Colorado Licensed Professional Land Surveyor do hereby state this Parcel Description was prepared from under my personal supervision and checking, and that it is true and correct to the best of my knowledge and belief.



Steven Parks - on behalf of Majestic Surveying, LLC
Colorado Licensed Professional Land Surveyor #38348

LEGAL DESCRIPTION
DATE: JUNE 2026
JOB NO. 1296.0001.00
SHEET 1 OF 2

TST

TST, INC. CONSULTING ENGINEERS

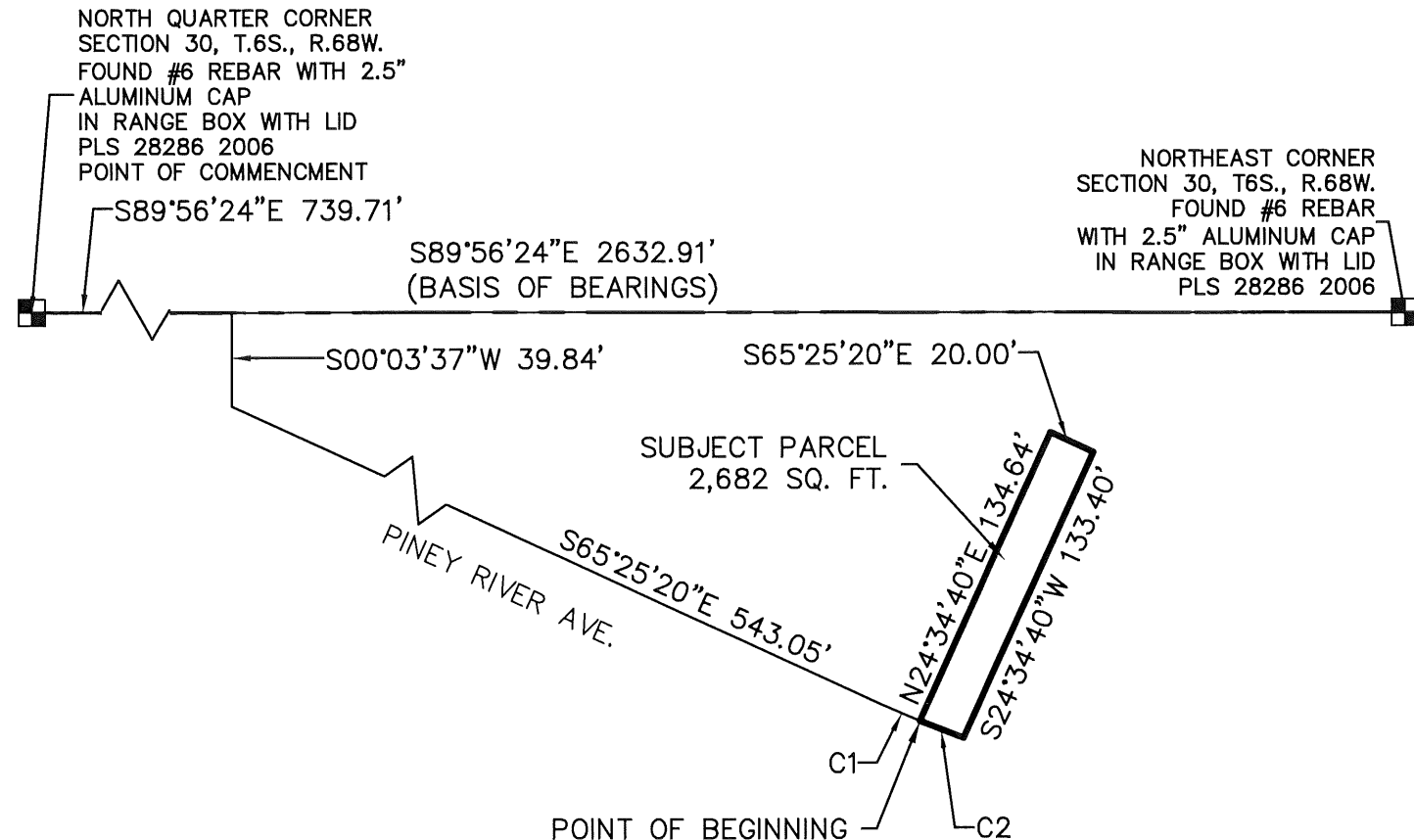
748 Whalers Way, Suite 200
Fort Collins, Colorado
Phone: 970.226.0557

NOTICE

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EXHIBIT B

70 of 83



CURVE TABLE					
CURVE	RADIUS	LENGTH	DELTA	BEARING	CHORD
C1	469.00'	18.90'	2°18'34"	S66°34'37"E	18.90'
C2	469.00'	20.04'	2°26'53"	N68°57'21"W	20.04'

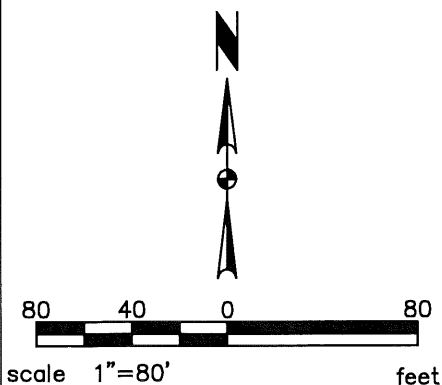


ILLUSTRATION
DATE: JUNE 2026
JOB NO. 1296.0001.00
SHEET 2 OF 2

TST TST, INC. CONSULTING ENGINEERS

748 Whalers Way, Suite 200
Fort Collins, Colorado
Phone: 970.226.0557

MEMO

To: Douglas County Libraries Board of Trustees

Date: September 2026

From: Bob Pasicznyuk

Subject: Executive Library Director's Report

BUSINESS UPDATES

Sterling Ranch Library Project Update



The library secured title to the property earlier this month. Earthwork, walls, and foundations are continuing at our Sterling Ranch Site. To date, our contingencies are in good shape. The facility should be enclosed and free of the elements around February. At that point, the project's timeline to completion becomes more reliable. Current estimates show completion around July 2027.

Figure.7Earthwork.at.the.new.Northwest.
Douglas.County.Libraries.site;

Library Service in Northwest Douglas County. Memo attached to this report.

Citizen Review Request. Request and Response attached to this report.

DIVISION UPDATES

Community Engagement:

Working on:

- Colorado Gives Day marketing and promotional campaign is being designed and ready for launch in November. This is DCLF's largest individual donor fundraising campaign of the year.
- Storybook Holiday in October is sold out. We are finalizing day of event logistics, staffing schedules for the events, and decor timeline, Storybook Holiday events for December are in final stages of major planning. The marketing campaign and ticket sales begin in October.
- Reading Buddies volunteer recruitment. We adjusted our Reading Buddies the timeline to try to catch volunteers before school started. We have received 46 applications so far.

Completed:

- Fete Des Fables 11th annual foundation gala was a success. The event was sold out, and fundraising goals were surpassed.

- The Brew Tour finishes at the end of September. Engagement is up 10% this year YTD, and average activity by participant is up 15%; in August our event and power hour attendance was over 3,000. Final numbers are TBD pending September results.
- Summer outreach has concluded. The Special Events and Outreach staff conducted 35 community pop-up outreach events at 17 unique locations, often in partnership with DCSD's Free Summer Lunch Program, engaging with over 1,200 people. In addition, another 19 general community events were attended with nearly 4,000 direct interactions.
- In September, DCL for Business presented to the Castle Rock EDC Board on the changes to Castle Rock demographics and psychographics. This presentation was the follow up to a presentation done in 2016 on the same topic, demonstrating the longevity of the DCL for Business services and the value of maintaining relationships and resources. Staff compared datapoints across the decade, which offered valuable insights about how the Castle Rock population has changed over time.
- Design and installation of the Well-Fed West. This retro-inspired exhibit highlighted some of the oldest restaurants and food-related history in Douglas County. The exhibit was created to be engaging and approachable for visitors of all ages, combining archival photographs and historical content with fun graphics and takeaways, including recipe cards and stickers. It was featured on 9News.

Customer Experience:

Working on:

- Special storytimes on September 25 for Dolly Parton Day
- Book Character Llama Llama will be visiting storytimes at all branches in early October
- Leads from each branch are testing and learning the new Cisco Webex system for Call Center operations so they can support staff at their branches as the system rolls out
- Began pilot of improved floor service model at Highlands Ranch. Planning to launch another floor service model pilot in Parker this fall.

Completed:

- Hired new Library Experience supervisor for Parker Library; starts October 1
- Enhanced vibrant libraries by providing space and opportunity for 340 adults to connect at Coffee Chat. Facilitated 54 Tech Tutoring appointments
- Materials Handling teams processed more than 300,000 items in the month of August, with Parker seeing the most items
- South Metro Fire District visited storytime – and got called out on a run! They made it back a 10 minutes later so excited kids could check out the trucks
- Provided two storytimes at the Highlands Ranch Mansion for Western Fest, complete with horse costume and ukulele!

Finance:

Working on:

- Budget Development
- Tracking the Sterling Ranch Project
- Evaluating opportunities to streamline reporting by eliminating redundant report storage when data is readily available in the system.
- Transitioning the operating account to Wells Fargo
- Completing the 2026 Gallup Q12 Engagement survey

Completed:

- Supported the closing of the Sterling Ranch Land Donation
- Completed annual employee reviews

Infrastructure Services:

Working on:

- Coordinating districtwide exterior building envelopes sealant replacement and re-caulking to maintain building integrity and prevent water intrusion.
- Advancing Lone Tree event hall AV upgrades to support effective hybrid Board meetings.
- Preparing winter collections for branches to support timely, seasonal customer access.
- Delivering branch workplace safety training in partnership with the Douglas County Sheriff's Office to strengthen staff preparedness.
- Installing access control infrastructure to strengthen physical security and support consistent standards across locations.
- Offering flu shot and biometric screening clinics to support staff wellness.
- Coordinating required final inspections to verify that the elevator phone system and the fire alarm panel are communicating properly. Once inspections have been successfully completed and we receive the Certificate of Occupancy from the State, the elevator will be returned to service.

Completed:

- Completed annual employee reviews and launched the 2026 Gallup Q12 engagement survey
- Completed the systemwide LED lighting project, ensuring compliance with Colorado's Clean Lighting Act.
- Installed and configured a cellular communication system in the Highlands Ranch Library staff and public elevators.
- Scheduled vendor demos for the new Integrated Library System.

- Launched a streamlined, easy-to-access procedure manual for staff.

BOARD TALKING POINTS

September 2026 – Let's Talk Digital

- DCL's digital branch is always open! Community members can use their library card number and PIN to access e-books, audiobooks, digital magazines & newspapers, movies, TV and music for the whole family.
- In 2025, 2,204,729 digital materials circulated. In 2026, DCL has seen customers already download 1 million digital checkouts. Additional online services include research resources, tools for online learning, and homework help.
- Cardholders can access digital services such as Hoopla which has materials in 128 languages; after English, the most borrowed are in French, Spanish, and German. Another digital service, PressReader offers 7,810 publications from 125 countries in 62 languages. The most in demand (after English) are in Spanish, German, and Italian.
- Featured apps ensure safe searching for readers 12 and younger, including read-alongs for preschoolers, plus access to BingePass, CuriosityStream, and Craftsy, for step-by-step video instruction.
- If you have not had the chance to use one DCL's many digital resources, visit our website at dcl.org to see all that we offer.

MEMO

To: Douglas County Libraries Board of Trustees

Date: August 30, 2026

From: Bob Pasicznyuk

Subject: Facility Planning. The Future of Roxborough and Louviers Libraries

Summary: Our library will open a facility in Sterling Ranch next year to serve Northwest Douglas County customers. This project is the culmination of work over the past decade, renewing our library facilities for customers today and tomorrow. Few libraries have top-flight facilities. Fewer can still claim that all their facilities are up to standard with supporting maintenance to sustain them. The Sterling Ranch project intended to achieve several goals described in our library's Facilities Master Plan:

- Replace rental facilities with appreciating assets maintained at the DCL brand.
- Provide capacity in keeping with our customer base.
- Position facilities regionally for easy access and cost-effective operations.

In the past 11 years, the library replaced rentals, compromised, and small facilities to serve a growing community. Each of those facility changes has been successful compared to regional and national library metrics. None of the facility changes were accomplished without complaint or without requests to keep libraries the projects intended to replace.

In advance of the opening of the Sterling Ranch library, the Board will consider the same questions as previous Boards: What is the future of the current Roxborough and Louviers libraries against next year's opening of a new state-of-the-art library in Sterling Ranch?

Discussion: Few decisions have more impact on the future financial and service outcomes of a library than deciding how many service outlets a library will build and activate. This memo provides background and options relevant to future library service in Northwest Douglas County.

Louviers: About Library Service and the Library Facility

Facility Owner: Douglas County Government

- Louviers was the first library to operate in Douglas County. In 1917, Dupont established a lending there. The County made that library a county branch in 1971. The Douglas County Library District has operated in Louviers as a branch since 1991.
- Serves the population of Louviers, Colorado – just under 300 customers.
- Operates on a minimal, unique schedule (Tuesdays 3pm – 8pm; Saturdays 10am – 3pm).
- Operates from the 2nd floor of the historic Clubhouse building (~1,500 square feet).
- This 2nd floor location does not comply with Americans with Disabilities Act requirements.
- Louviers is just about 5 miles from the Sterling Ranch site – about 10 minutes by car.
- The total annual operating cost for Louviers is about \$19,509.

Options, Observations, Challenges, and Alternatives

Option 1: Maintain the Louviers *Status Quo* – current hours, services, and location.

- The cost of operating Louviers is low as are its associated customer outcomes.
- The current location does not comply with the Americans with Disabilities Act (ADA).

- The location is not consistent with value commitments described in our *Facilities Plan*.
 - The library seeks to invest in appreciating assets instead of rental properties.
 - The library will offer a consistent menu of services and hours of operation.
 - The library's minimum branch size is 16,000 square feet.
 - The library supports a regional approach with expected customer density.

—Retaining Louviers with no changes or without a larger, intentional strategy would be a contradiction with other Douglas County communities. Why would we support a library in Louviers and not Larkspur, Franktown, or other locations that are larger or further from a full-service branch?

Option 2: Upgrade Louviers as a larger commitment and strategy for smaller communities.

- Purchase the facility or negotiate with the County to achieve accessibility, uniform hours, and the comfort and amenities aligned with the DCL brand.
- The library could use the opportunity to innovate our service offerings with a new approach – self-service library option. An upgrade at Louviers consistent with the DCL brand would require investment in furniture, fixtures, equipment (likely HVAC, security, and technology improvements). Louviers could serve as a proof-of-concept start toward a small community service model.

—Be aware that an upgraded service model for Louviers (or any smaller community in Douglas County) would be motivated by a service ethic, equity, historic significance, innovation, or some other value propositions. Louviers, no matter what the service model, won't appreciably change customer metrics. Other locations would reach more customers.

Option 3: Start a mobile service, adding Louviers as a stop.

- Requires a significant investment toward a depreciating asset.
- Provides a limited service (books delivery) focus – short on community connections.
- Contrasts negatively with digital delivery for book delivery.
- Often requires specialty staff skills and investment in a new team.
- It isn't seen by stakeholders as a positive replacement of bricks and mortar.

—I believe this to be the least advantageous option. It's not likely to satisfy Louviers citizens or produce metrical outcomes. It is also not inexpensive.

Option 4: Consolidate library service at Louviers to the new Sterling Ranch library:

While Louviers has a long history of library service, times change and services change. Douglas County does not resemble its 1917 or 1971 roots. Citizens in all our communities routinely travel several miles and more than 10 minutes to reach our other full-service libraries. This option is consistent with the library's consolidation efforts at all other Douglas County communities. The proposed 2027 budget reflects this option. Board direction for an alternate would require a budget amendment and an updated forecast for library reserves.

Louviers Recommendation

I recommend Option #4 to the Board - consolidating our Louviers library operations with the new library at Sterling Ranch. It's consistent with the library's past commitments. If the Board wishes to retain Louviers, I believe that we should make a commitment to it as a new model of service that we are deploying across the County.

About Library Service and the Library Facility in Roxborough

Facility Owner: Roxborough Station, LLC

- DCL has operated in Roxborough via its current rental facility for about 20 years.
- The facility primarily serves Roxborough residents.
- The library currently offers DCL's consistent hours and services.
- The library is at Roxborough's primary retail strip on the 2nd floor.
- The current lease runs through 12/31/2027.
- The current location is 3.8 miles from the Sterling Ranch site – about 9 minutes by car.
- The County is planning on extending their Link transportation service to this area so that customers without the ability to drive will have access to the new library in Sterling Ranch.
- The total 2026 operating cost for the Roxborough library is about \$1,190,868.

Options, Observations, Challenges, and Alternatives

Option 1: Maintain the Roxborough *Status Quo* – current hours, services, and location.

This would require extending our lease with Roxborough Station, LLC, expiring on 12/31/2027. It would also require the ongoing cost of operations. This would also require changing three commitments in our *Facilities Master Plan*.

- Moving away from rentals and toward owned, appreciating assets.
- Minimum branch size of 16,000 square feet.
- The prohibition of splitting the customer base, increasing costs with little outcome.

Option 2: Transition Roxborough to a self-service model. If consistency in decision making is a value, this would likely precipitate adding self-service libraries to other communities in Douglas County. The Roxborough Metro District is interested in providing community space to support any library presence in Roxborough.

Option 3: Start a mobile service, adding Roxborough as a stop.

- Requires a significant investment toward a depreciating asset.
- Provides a limited service (books delivery) focus – short on community connections.
- Contrasts negatively with digital delivery for book delivery.
- Often requires specialty staff skills and investment in a new team.
- It isn't seen by stakeholders as a positive replacement of bricks and mortar.

Option 4: Consolidate library service at Roxborough to the new Sterling Ranch library. This option is consistent with the library's consolidation efforts at all other Douglas County communities.

Roxborough Recommendation

I recommend Option #4 to the Board - consolidating our Roxborough library operations with the new library at Sterling Ranch. This recommendation is consistent with the decisions the library has made in other communities over the past decade and more. Roxborough citizens will not be inconvenienced by this move any more than most of the citizens we serve in Douglas County. I recommend that the Board only provide an option in Roxborough that we are willing to offer everywhere else in Douglas County. Board direction for any option other than consolidation will require a budget amendment and updated forecast for library reserves.



Citizen Review Request

We appreciate your feedback. Please return this completed form to any Douglas County Libraries (DCL) location. Library staff will review your request, research the item/service in question, and respond within 21 business days. If further communication is required, library staff will direct you according to our [Citizen Review Request Policy](#).

Three Foundational Legal Requirements:

1. Review requests are available to Douglas County, Colorado Residents alone.
2. The library may only review a title or issue once in any two-year period.
3. The library may not review any person or group's use of library civic spaces.

The library's Citizen Review Request Policy gives customers the opportunity to voice opinions, ask for changes, and request redress of grievances about library decisions. The process affords higher levels of management review. Reviews focus on three questions relevant to your inquiry or request for change:

- Does our library's practice align with competent professional standards?
- Does our practice align with library board policy?
- Does our library's practice comply with state and federal law—especially Colorado statutes around library practice.

Date: Thursday, August 27, 2026

Theme/Topic of Concern: Catalog Choices & Politicization of Science & Math

First Name: [REDACTED]

Last Name: [REDACTED]

Address: [REDACTED]
[REDACTED]

Phone: [REDACTED]

Email: [REDACTED]

Are you a Douglas County Resident? Yes

I have read [DCL's Policies](#) on Access, Children and Parents, Citizen Review Request, Curating Library Collections and Content, Library Facilities and Spaces, and Programs.

Please Initial Here: [REDACTED]

About Your Request:

1. What are you asking library leadership to review or change?

I came into Lone Tree branch the other day in search of the math collection specifically a book on linear algebra. In the math and science section I found almost no books directly related to math. I did find a book displayed in this section on the Natural World of Animal Sexuality, Queer Ducks. (I can provide an image of how absurd this is)

This illustrates a pattern of mind-numbing catalog choices and deliberate squandering of taxpayer funds to push retarded progressive policy. One of the primary users of libraries are children. What is the goal here?

2. Please provide specifics about your request—title, author/performer, location, date, and more.

Please review your catalog choices, remove perverted progressive content and start buying classics and pure science & math books.

You are not being asked to censor or discriminate, you are being asked to prioritize tax-payer funds on legitimate knowledge and cultural treasures, not social engineering and cultural decline.

Citizen Review Request - Response

Received: 8/27/2026

Review Complete: 8/31/2026

Review Requested by: [REDACTED]

Address: [REDACTED]

Review Item: *Queer Ducks (and Other Animals) The Natural World of Animal Sexuality*

Reviewed by: Bob Pasicznyuk

[REDACTED]

I'm Bob Pasicznyuk, Executive Director at Douglas County Libraries. I am responding to your Citizen Review Request – *Queer Ducks (and Other Animals) The Natural World of Animal Sexuality*.

Thank you for reaching out.

About the Review Process

Colorado laws (CRS 24-90-122) regulate public library practice, specifically about the boundaries involved in the selection and reconsideration of library content. A copy of the statute is available at <https://www.cde.state.co.us/cdelib/librarylaw/part1>.

The state statute requires that public libraries have policies about library content and related collection practice. Policies must govern the review process and establish criteria for reviews. Our library policies are set by the Douglas County Libraries Board of Trustees – seven appointed community members who oversee the library. I understand that you have accessed our policies, but I'll list their source here as well. Those policies are available at <https://dcl.org/board/policies>.

I am citing those sources since they are foundational to any review. Beyond this review process, the Board sets aside times at their business meetings for public comment. Those meetings are regularly held on the last Wednesday of the month. This year, those meetings are scheduled at the Lone Tree Library at 5:30 pm. The Board meeting schedule is available at <https://dcl.org/board/meetings>.

Summary of Your Request:

You asked the library to:

1. "Review our catalog choices and deliberate squandering of taxpayer funds to push retarded progressive policy. One of the primary users of libraries are children. What is your goal here?"
2. "Start buying classics and pure science and math books."

3. You concluded the request by stating: “You are not being asked to censor or discriminate, you are being asked to prioritize tax-payer funds on legitimate knowledge and cultural treasures, not social engineering and cultural Decline.”

Library Policies and Legal Boundaries Around Library Content

I am grateful that you care enough about our library and community to give your valuable time, engaging the library about its book collections.

Colorado Legal Boundaries Relevant to Your Request (CRS 24-90-122)

Section b: The law directs libraries to support customer access freedom.

“The public has the right to access a range of social, political, aesthetic, moral, and other ideas and experiences through a public library;”

Section d: The law prohibits libraries from restrictions based on a long list of criteria. These restrictions are applicable across the content supply chain – from the decision to purchase to when it leaves the library inventory.

*For example: “A public library shall not exclude a library resource because of the ethnic origin, ethnic background, or gender identity of those contributing to the creation of the library resource **or because of the topic addressed by the library resource or the opinions expressed in the library resource;**”*

Douglas County Libraries Policy Directives Relevant to Your Request

1. Library policy directs staff from making value-judgments about library content.

Our commitment to welcoming requires that our decisions and practices are free from discrimination and individual content preferences, not based on the perceived literary or social value, or lack thereof, of any particular type of media, material, or programming.

2. Policy directs staff to support the members of our community in their freedom and self-determination. In other words, we purchase content that we anticipate will have an audience or that has demonstrated community demand. Books must demonstrate value through use.

Customer demand is our priority and guide in selecting and retaining items for the inventory. Library staff are charged with using usage patterns, sales data, publisher marketing investments, and customer requests to ground decisions to select, locate, and retain items. Letting the marketplace ground curation is the best way to mitigate staff or customer pre-conceived philosophies or biases.

Application of the Policy and Law to this Title: Queer Ducks (and Other Animals) The Natural World of Animal Sexuality.

- The title has been in the library collection in multiple formats for 4 years.
- During those 4 years, customers have loaned the title 96 times.
- An average non-fiction title like this loans about five times each year.
- Customers are using this title almost 5 times the average for non-fiction content.

3. Policy allows staff to use corroborating information to select or retain titles.

In addition to demand, the Library will employ additional and customary professional criteria in making specific decisions about titles:

- *Documented community needs and interests*
- *Contemporary significance*
- *Attention from bona-fide critics and reviewers with expertise*
- *Author reputation and expertise in the field*
- *Comprehensiveness and depth of treatment*
- *Relationship to the existing inventory*
- *Availability of content from sources other than purchase*
- *Durability of the format and whether the item can meet the rigors of use*
- *Price and availability from our approved vendors.*

In this case, there is a prima facie case that sexuality (particularly controversies in the culture around sexuality) is of interest in our community, state, and nation. Disputes are common across all sides of cultural divides.

In this case, reviewers and critics recommend the title in its subject area.

- *Kirkus Reviews* 03/01/2022
- *Booklist* 03/15/2022 pg. 59 - *Starred Review
- *Publishers Weekly* 06/20/2022 - *Starred Review
- *School Library Journal* 12/09/2022 pg. 1 - *Starred Review
- Printz Honor in 2023

Applying Policy and Statutes to Your Request – My Conclusion

Given the boundaries of Colorado law and library policy as well as the data available about the book, this is the conclusion of my review.

Request 1: “Review our catalog choices and deliberate squandering of taxpayer funds to push retarded progressive policy. One of the primary users of libraries are children. What is your goal here?”

I have reviewed the work, our processes, and professional practice against community demand and corroborating information. The book has an audience in Douglas County

and is relevant to customer interests in our County and beyond. The book's usage pattern suggests that library practice aligned with law and policy. Our library's overall collection usage pattern is in the top quartile for public libraries nationwide. I am directing no changes to library practice.

The physical copies are located in the library adult collection. Location isn't a relevant issue in terms of digital copies. I am directing no changes to practice.

Request 2: "Start buying classics and pure science and math books."

Our library purchases many titles and copies of titles for items commonly called classics. The same is true of science and math books. The library offers a service so that we can evaluate and order additional titles you seek. Please see our website or consult our staff for assistance if you have titles you would like to see added to our inventory.

Request 3: You concluded the request by stating: "You are not being asked to censor or discriminate, you are being asked to prioritize tax-payer funds on legitimate knowledge and cultural treasures, not social engineering and cultural Decline."

I won't comment on this request other than to note that views differ about the purpose of public libraries. Some believe that the library should build book collections with care around the quality of titles. Others view the library as a reflection of community interests. Our library's policies and practice clearly favor the latter.

Again, I wish to thank you for contacting me about your concerns. I am pleased to make an appointment with you to discuss anything in this review or about our library practice.

I'll conclude my remarks by pointing out the obvious - that our library doesn't endorse or validate the content or conclusions of any of its titles. I'll also note that our library's policies and practice have not materially changed in its 36-year history or against the standards of library practice across North America.

The library is always available to assist anyone in curating content to meet their needs.

Sincerely,

-Bob